

# Avery

Elizabeth Stuart Phelps



Project Gutenberg

**Avery**

Elizabeth Stuart Phelps



**Project Gutenberg**

## **The Project Gutenberg eBook of Avery**

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg License included with this eBook or online at [www.gutenberg.org](http://www.gutenberg.org). If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

Title: Avery

Author: Elizabeth Stuart Phelps

Release date: November 23, 2010 [eBook #33393]

Most recently updated: January 6, 2021

Language: English

Other information and formats: [www.gutenberg.org/ebooks/33393](http://www.gutenberg.org/ebooks/33393)

Credits: Produced by Al Haines

\*\*\* START OF THE PROJECT GUTENBERG EBOOK AVERY \*\*\*



"YOU ARE SO GENEROUS TO ME" (page 24)

**"YOU ARE SO GENEROUS TO ME" ([page 24](#))**

# AVERY

*By Elizabeth Stuart Phelps*

BOSTON AND NEW YORK  
HOUGHTON, MIFFLIN AND COMPANY  
The Riverside Press, Cambridge  
1902

COPYRIGHT, 1901, BY HARPER & BROS.  
COPYRIGHT, 1902, BY ELIZABETH STUART PHELPS WARD  
ALL RIGHTS RESERVED

*Published October, 1902*

*Avery* originally appeared as a serial in *Harper's Magazine*  
under the title of *His Wife*.

# AVERY

## PART I

"Oh, Pink! Mother *can't* lift you.... I would if I could.... Yes, I know I used to—

"Molly, take the baby. Couldn't you amuse him, somehow? Perhaps, if you tried hard, you could keep him still. When he screams so, it seems to hit me—here. It makes it harder to breathe. He cried 'most all night. And if you could contrive to keep Pink, too—

"What is it, Kate? You'll have to manage without me this morning. Pick up anything for luncheon—I don't care. I couldn't eat. You can warm over that mutton for yourselves. We must keep the bills down. They were too large last month. Order a grouse for Mr. Avery. He says he will dine at home to-night—

"There 's the telephone! Somebody answer it. I can't get down, myself.... Is it Mr. Avery? ... Wants me? ... I don't see how I can.... Yes. Hold the wire. I 'll try—

"Did you speak to me, Molly? ... No, I 'm not feeling any worse. It's only getting up the stairs, and ... something that tired me a little. I don't want Dr. Thorne. I can't call the doctor so often. I 'm no worse than ... I sometimes ... am. It's only that I cannot breathe.... Molly! *Molly!* Quick, Molly! The window! Air!"

As Molly dashed the window up, Mrs. Avery's head fell back upon the pillows of the lounge. They were blue pillows, and her blanching cheek took a little reflection from the color. But she was not ghastly; she never

was. At the lowest limit of her strength she seemed to challenge death with an indomitable vitality.

There was a certain surprise in the discovery that so blond a being could have so much of it. She was very fair—blue of eye, yellow of hair, pearly of skin; but all her coloring was warm and rich; when she was well, it was an occupation to admire her ear, her cheek, her throat; and when she was ill her eye conquered. Every delicate trait and feature of her defied her fate, except her mouth; this had begun to take on a pitiful expression. The doctor's blazing eye flashed on it when he was summoned hastily. It had become a symptom to him, and was usually the first one of which he took note.

Dr. Esmerald Thorne had the preoccupations of his eminence, and his patients waited their turns with that undiscouraged endurance which is the jest and the despair of less-distinguished physicians. Women took their crochet work to his office, and men bided their time with gnawed mustache and an unnatural interest in the back-number magazines upon his table. Indifferent ailments received his belated attention, and to certain patients he came when he got ready. Mrs. Avery's was not one of these cases.

When Molly's tumultuous telephone call reached him that day, it found him at the hospital, sewing up an accident. He drew the thread through the stitch, handed the needle to the house surgeon, who was standing by, and ran downstairs. The hospital was two miles from Marshall Avery's house. Dr. Thorne's horse took the distance on a gallop, and Dr. Thorne took Avery's stairs two at a time.

He came into her room, however, with the theatrical calm and the preposterous smile which men of his profession and his kind assume in the presence of danger that unconsciousness has not blotted from the patient's intelligence. Through the wide window the late October air bit in. She was lying full in the surly breeze on the lounge pillow, as Molly had left her. Her blue morning gown was clutched and torn open at the throat. No one had thought to cover her. Her hands were as purple as her lips. She was not gasping now: she had no longer the strength to fight for her breath.

Dr. Thorne's professional smile went out like a Christmas candle in a hurricane. He opened his mouth and began to swear.

The corners of her lips twitched when she heard him—for she was altogether conscious, which was rather the worst of it, as she sometimes said; and, in point of fact, she laughed outright, if one could call it laughing.

She tried to say, "I should know that was you if I were in my grave," but found the words too many for her, and so said nothing at all, nor even seemed to listen while he rated Molly, and condemned Kate, and commanded both, and poured stimulants angrily and swiftly. The very blankets and hot-water bags seemed to obey him, like sentient things—as people did; and the tablet in his fingers quivered as if it were afraid of him.

As soon as she began to breathe naturally again, she said, "I 've made you a great deal of trouble! How is Helen's cold, doctor?"

"I shall tell my wife that," replied the doctor, in a tone that was a mongrel between anger and admiration. This puzzled her, and her fine eyes gently questioned him of his irritation. For she and the doctor's wife were schoolmates and old friends. She had been quite troubled about Helen's cold.

"Oh, never mind," said Dr. Thorne; "only it is n't natural, that's all—when patients come out of attacks like yours. Their minds are not concentrated on other people's colds. Helen is quite well, thank you. Now, Mrs. Avery, I want to ask you"—

"Don't," interrupted Jean Avery.

"But I find it necessary," growled Dr. Thorne.

She shook her head, and turned her face, which shrank against the blue pillow. Pink and the baby began to quarrel in the nursery, and then both cried belligerently.

"The baby kept me awake," faintly suggested Mrs. Avery.

"It is an excellent explanation,—but you've just thought of it," observed Dr. Thorne. He spoke in a much louder tone than was necessary; his voice rose with the kind of instinctive, elemental rage under which he fled to

covert with a sympathy that he found troublesome. "What I wish to know—what I insist on knowing—is, what caused this attack? It is something which happened since breakfast. I demand the nature of it—physical? mental? emotional?"

"You may call it electric," answered Jean Avery, with her own lovable smile—half mischief, half pathos.

"I see. The telephone." Dr. Thorne leaned back in his chair and scrutinized the patient. Quite incidentally he took her pulse. It was sinking again, and the tempo had lapsed into unexpected irregularity.

"Helen shall come to see you," said Dr. Thorne with sudden gentleness. "I'll send her this afternoon. You will keep perfectly still till then.... Mr. Avery is in town?" carelessly. "Coming home to lunch?"

"He has gone to court."

"To dinner, then?"

"It depends on the verdict. If he wins the case"—

"Oh, I see. And if he loses?"

"He might go gunning, if he lost it," answered the wife, smiling quite steadily. "He might go gunning with Mr. Romer. He is very tired. He takes it hard when he does not win things—cases, I mean. He might—you see"—She faltered into a pathetic silence.

"I will send Helen at once," replied the physician. He felt that he had offered his subtlest and most artistic prescription. More than most wives are valued, Dr. Thorne loved his.

But as he went downstairs a black frown caught him between the brows.

In the course of an hour he managed to dispatch a messenger to the court-house. Sixty patients clamored for him, but he wrote the note twice over, sitting in his buggy, before he sent the third copy:—

DEAR AVERY,—Your wife has suffered one of the attacks whose nature I explained to you some time ago. I found her condition serious, indicating a marked weakness of the heart. I consider that she had a narrow escape. You would not forgive me if I did not tell you, that you may govern your movements accordingly.

Yours as ever,  
ESMERALD THORNE.

Jean Avery lay with closed eyes, quite still, and smiling tranquilly. Only the invalid mistress of a home knows how to value the presence of another lady in a household where children and servants fill the foreground, and where, as Dr. Thorne once put it, "every care as fast as it arises is taken to the bedside of the patient." The ever-womanly arrived with Mrs. Thorne. In the repose which came with her coming, and did not go with her going, the sick woman lay sheltered for the remainder of the day. Her face, her voice, her motions, expressed the touching gratitude of one who has long since learned not to look beyond the bounty of temporary relief. Mrs. Thorne noted this; she noticed everything.

The telephone called towards noon, ringing rapidly and impatiently—operators, like horses, were always nervous under Marshall Avery's driving; and when an anxious message from the court-house reached the wife, she said, "Dear Helen!" as if it had been Helen's doing. And when they told her that Mr. Avery asked how she was, and would get home by mid-afternoon, and at any moment if she needed him, and would not leave her again that day, and that he sent his love to her and begged her to be careful for his sake, her breath fell so short with pleasure that they took fright for her.

"My husband is so kind to me!" she panted. Then her color came—a tidal wave, and her pulse, which had been staggering, fell into step and began to march strongly.

"But this is a miracle!" cried the doctor's wife.

"Love is always a miracle," Jean Avery said. Then she asked to have her hair arranged, and wanted an afternoon dress, and lace, and would have a bracelet that her husband gave her, and the turquoise pin he liked, and begged to be told that she looked quite well again, for "Marshall hates to see me ill!"

And the children—see that the children are dressed; and his slippers—they must be put beside the library table in that place he likes; not anywhere else, please, but just where he is used to finding them. And Kate will have dinner early; and about the soup—and the salad—and not to overdo the grouse; and to light the library fire—and were they sure she could n't go down herself to see to things, and get as far as the library sofa?

"Mr. Avery does n't like me not to meet him.... My husband is so good to me!" she urged, in the plaintive staccato that her short breath cut, till Helen's eyes blazed and then brimmed to hear her. And now Helen was gone, and the children; and Jean lay quite still and alone, smiling tranquilly, as we said.

Her thoughts were long-distance wires, as the thoughts of the sick are, and they covered the spaces of ether and of earth that afternoon—the unexplored wastes into which the soul invites no fellow-traveler. Her heart fled to the rose-red star of their early dream. They had loved as the young and the well, the brave and the bright, may love; passionately, as the brown and the blond do; and reasonably, as the well-mated and the fortunate can. They were of the same age, the same class, the same traditions; they knew the same people, who congratulated them in the same words; they had inherited the same ideals of life, and went buoyantly into it. Not so much as a fad had inserted itself between their tastes, and in their convictions they were mercifully not divided. At first their only hardship had been the strenuous denial of the professional life; but she never wished him to make money—she was quite happy to put up muslin curtains at twelve and a half cents a yard, while her friends hung lace at twenty dollars a window—and had flung herself into the political economy of their household with a merry and ingenious enthusiasm, which she wore as charmingly as she did the blond colors, the blue, the lavender, the rose, the corn, over which she

strained her honest eyes and bent her straight shoulders to save dressmakers' bills. Since she had been ill she had tried—how hard no man could ever understand—not to grow careless about her dress. "The daintiest invalid I ever knew," Dr. Thorne used to say.

Marshall cared a good deal about such matters, was fastidious over a wrinkle, was sure to observe a spot or a blemish, while the immaculate might pass unnoticed for weeks; disliked old dresses; when she had a new one on he admired her as if she were a new wife, for a day or two. She was full of pretty little womanly theories about retaining her husband's devotion.... When had it begun to flag? She had made a science of wifehood, and applied it with a delicate art.... Why had it failed? ... No, no, no! Not *that*! Not that word, *yet*! Say rather, why had it faltered? With a tremulous modesty characteristic of her sweet nature, she scored herself for the disillusion of her married life, as if somehow the fault were hers.

How had it all come about? Was she fretful with the first baby? It seemed to have begun (if she thought very hard about it) with the first baby. She knew she had faded a little then. Pink was a crying baby. "I lost so much sleep! And it makes one look so, about the eyes. And then, as Marshall says, maternity affects the complexion."

Her thoughts came down from the rose-red star like aeronauts on parachutes, landing in fog and swamp. Oh, the weariness, the waste of it! For the more she thought, the more she felt herself like one hanging in mid-space—heaven above her, earth below, and no place for her in either. She could not fly. She would not fall. "And I 'm not very strong to be clinging and holding on, like this. One might let go ... and not mean to."

And yet she had held on pretty well, till the second baby came. She had never felt this moral dizziness till then, this something which might be called life-vertigo, that made it seem in mad, black moments easier to drop than to cling. For after the boy was born she was not well. She had never been strong since. And Marshall hated sickness. He was such a big, strong, splendid fellow! It had been very hard on Marshall.

He hated it so, that she hated it too. She had scorned the scouts of her true condition, and when the trouble at the heart set in, and he called it

"only nervous," she said, "No doubt you are quite right, dear," and blamed herself for feeling somehow hurt. She did not speak of it to any one for a long time, after that. But when, one easterly afternoon, the air being as heavy as the clods of the grave, she lay gasping for life for three hours alone, not able to reach a bell or call for help, she sent for Dr. Thorne.

And he told her, for she insisted—and he knew his patient; not a woman to be wheedled by a professional lie—he told her the truth.

"Poor Marshall!" said Jean Avery. "It will be so hard on my husband! ... Don't tell him, doctor. I forbid you, doctor. I think he 'd take it easier if I told him myself, poor fellow!"

She did not tell him that day, for he did not come home; nor the next, for he had a headache; nor the third, for he was in excellent spirits, and she could not bear to. In fact, she waited a week before she gathered her courage to speak. One Saturday evening he did not go to the club, but was at home, and he had been very kind to her that day, and loving, and in fact he noticed her appearance, and asked her what was the matter, and why she breathed so short.

Then she drew his hand over her eyes, so that she might not see how he would look, and the beautiful curve of her lip broke a little, for she felt so sorry for her husband; but her firm voice carried itself with courage (Jean never had the invalid's whine), and she told him what the doctor said.

Marshall Avery listened in a silence which might have meant the utmost of distress or the innermost of skepticism. He walked to the window and stood for a while looking out into the lighted street. Perhaps he had a blundering, masculine notion of doing the best thing for her. She would be the first to believe that.

"I 'll see Thorne about this," he said presently. "I can't have him putting you in a panic. You 've grown very nervous lately.

"Cheer up, Jean," he added, coming over to her sofa. "Don't grow hysteric, whatever happens."

He sat down and put his arm around her. Five minutes ago she would have clung to him and poured her soul out on his breast—would have put up her hand to his cheek and blessed him and worshiped him, as a wife does—and would have spared him the worst of everything, and given him the best; refrained from complaint, and lavished hope; made little of her own suffering, and much of his distress for her sake, as this wife could.... Now, she lay quite still and irresponsive. She did not speak, but tried to smile gently upon him. Then he saw her color change, and he flung the window up—for he was startled—and held her to the air.

"Poor girl!" he said. "Poor Jean! My poor Jean!"

"Oh, *don't!*" cried Jean. For the tenderness, coming after that other, well-nigh slew her. She began to sob,—the cruel sobs that wreck a weakened heart,—and the man fought for her life for an hour.

When Dr. Thorne came the danger was quite over; as it usually is in such cases before the physician can arrive; but he said roughly,—

"What have you been doing to her?"

"He has been saving my life," panted Jean.

"Well," replied Esmerald Thorne, "he can."

When the two men went downstairs, the doctor said,—

"Your pardon,—if I wronged you, Avery?" for he was generous in apology for so imperious a man.

"Why, yes, doctor," returned the husband, with a puzzled face, "I think you did."

Jean lay quietly on the blue lounge. Pink and the baby were taken over to Helen's. The house was unnaturally still. Marshall was coming home in the middle of the afternoon to see her—to see *her!* The sick woman seemed to herself for that span of peace like a bride again, cherished and happy. Care

and illness had never occurred. Life had not dulled the eyes of love. Use had never threatened joy with indifference. This word, that deed, such a scene, all were phantasms of the fog into which she had fallen. She must have grown morbid, as the sick do. Oh, the rose-red star hung in the heavens yet!

His key clicked in the lock, and he came running up the stairs; dashed in, and knelt beside the lounge; then put his arm about her quietly, for he was shocked when he saw how she looked. His dark, fine face was broken with his feeling. Hers quivered as she lifted it to his kiss.

"Did you lose the case, poor dear?" she said.

"Curse the case!" cried Avery. "What's a case? ... I 'm not going gunning, Jean. I 'm going to stay with you."

Color brushed all over her wan cheek, her brow, her lips.

"I was so afraid of guns!" she pleaded. "I always have been!"

"It is one of your weaknesses," replied the husband, a shade less tenderly.

"I know, dear. I have so many! Guns—and boats—I am ashamed of myself. They 're like snakes. The terror is born in me. I don't know how to help it. You are very patient with me, Marshall. Perhaps, if I were stronger—but when one is ill, one can't—always—help things." ...

"Never mind," he said, in a magnanimous tone. "When you get well, you will feel differently. We must get you well, now. That is all I care for. It is all I care for in the world," he added, warmly and earnestly.

She stirred towards him with an expression that would have moved a far more unworthy man than he. It was quite unconscious with her, and as instinctive as a law of nature. So a flower pleads for light. So life asks for nutrition.

"Could n't you sit up—if I held you? Try!" he commanded, shaking his head in a boyish way he had: she could not have told how she loved to see it. He took her in his arms, and carried her across the room to the easy-chair. There he gathered her like a child, and put his cheek to hers, murmuring little words and phrases that both loved—language of their honeymoon, and joyous years. She drank them down as if they had been the breath of life.

"Doctors don't know!" he cried. "I believe you could get well."

"I know I could," said Jean.

"You will! I say you must. You shall!" insisted Marshall Avery, in his passionate, peremptory voice. Jean did not reply. But she smiled divinely into his bending face. Swiftly she saw the room flooded with roselight. A star swam in mid-ether. Two floated in it, with bridal eyes. Earth was far and forgotten. Heaven was close.

He was quite devoted to her for a week or two after this; came home early, took her sometimes to drive, made much of little family jokes and merriment, admired everything she wore, gave her a white silk Spanish shawl, and brought her the latest novels; sent her flowers like a lover, and spent his evenings with her. He talked of another maid to take care of the children, so that Molly could give her time to the invalid. But Mrs. Avery shook her head. They could not afford that.

"You are so generous to me, Marshall! ... I am sorry it is so expensive to be sick. But I 'm getting better, dear—don't you see I am? I have n't felt so well for a year," she added.

"Oh, we 'll have you round again pretty soon," he said, with that hearty optimism which, one could not have told exactly why, seemed just to miss of the nature of sympathy. But Jean's drafts on sympathy had always been scanty. It was very much as it was about the lace curtains. She could get along without what other women demanded. At least, she had always thought she could. It used to be so. She was troubled sometimes to find that sickness creates new heavens and a new earth, and that the very virtues of

health may turn again and rend one. It was as if one had acquired citizenship in a strange planet, where character and nature change places.

It was with a kind of fear that she received her husband's acceleration of tenderness. How was she to forego it, when the time came that it might—she omitted to acknowledge to herself that it would—overlook her again? She tried feverishly to get better in a hurry, as if she had been in some Southern climate where she was but a transient tourist. She tried so hard, in fact, as sometimes to check the real and remarkable improvement which had now befallen her.

One day Mr. Avery announced that he had the toothache, and if he were not so driven he would go and see Armstrong; he meant to give Armstrong all his work after this; Armstrong was a good fellow, and they often met Saturdays at the club. But the great Electric case was up just then, and necessary dentistry was an impossible luxury to the young lawyer. Endurance was a novelty, and Avery grew nervous under it. He bore pain neither better nor worse than most men; and he was really suffering. Any wife but Jean would have called him cross. Jean called him her poor boy. She dragged herself from her lounge—she had been a little less well the last few days—and lavished herself, as women like Jean do, pouring out her own tenderness—a rare wine. After all, there are not too many tender women; Jean was a genius in sympathy. She spent more sweetness and strength on that toothache than the other kind of woman has to give her husband if he meets a mortal hurt. Avery received this calmly. He was used to it. To do him justice, he did not know how cross he was. He was used to that, too. And so was she. The baby was ailing, besides, and things went hard. The sick woman's breath began to shorten again; and the coy color which had been so hard to win to her lips fled from them unobserved. The doctor was not called; Helen Thorne was out of town; and so it happened that no one noticed—for, as we say, Marshall Avery had the toothache.

One night he came home late, and as irritable as better men than he may be, and be forgiven for it, for the sake of that species of modern toothache in which your dentist neither extracts nor relieves, but devotes his highly developed and unhappy ingenuity to the demonic process which is known as "saving a tooth."

"He calls it killing a nerve," sputtered Avery. "I should call it killing a patient. This performance is the Mauser bullet of up-to-date dentistry. It explodes all over you— Oh, do let me alone, Jean! You can't do anything for me. A man does n't want to be bothered. Go and lie down, and look after yourself. Where is that hot water? I asked for alcohol—laudanum—some confounded thing. Can't anybody in this house do anything for me? I don't trouble them very often."

"It's Molly's evening out," said Mrs. Avery patiently. "I 'll get everything as fast as I can, dear." She was up and down stairs a good deal; she did not notice, herself, how often. And when she got to bed at last, she cried—she could not help it. It was something he had said. Oh, no matter what! But she did not know how to bear it, for she was so exhausted, and sobs, which were her mortal enemy, overcame her as soon as she was alone.

He did not hear her, for the door was shut between their rooms, and he was quite occupied with his Mauser bullet. He had fallen into the habit of shutting the door when the second baby was born; he maintained that the boy was worse than Pink. Pink cried like a lady, but the boy bellowed like a megatherium.

A little before half-past ten she heard him get up and dress and stir about. He opened the door, and said, without coming in:—

"I 'm going to have this blank thing out. I 'm going to Armstrong's house. I won't stand it another hour. I 'll be home presently."

She tried to tell him how sorry she was, and to say some one of the little loving, wifely things with whose warm, sun-penetrated atmosphere she so enveloped his life that he took them as a matter of course. It is doubtful if he heard her altogether, for her voice was fainter than usual.

"Won't you come in a minute?" she pleaded. He did hear that. But he did not come.

"Oh, I can't stop now," he returned petulantly. "I 'm in such blank torment. I 'll be back; I may go to the club afterwards, and play it off at something, but I'll be back before midnight."

"*Dear?*" she called then, in an agitated voice; it was not like hers, and not like her; if he had perceived this—but he perceived nothing. "I don't feel *quite* well"—she tried to say. But he was halfway downstairs. These five words wandered after him like the effort of a dumb spirit to communicate with deaf life.

He thrust himself savagely into his overcoat, turned up the collar over his toothache, slammed the front door, and went.

Jean listened to his footfall on the steps, on the sidewalk; the nervous, irritable, uneven sound softened and ceased. She was quite awake, and her mind moved with feverish vitality. She was usually a good sleeper for a sick person; but that night she found herself too ill for any form of rest. The difficulty that she had in breathing increased with an insidious slowness which she had learned to fear as the most obstinate form of her malady. The room grew empty of air. The candle burned blue to her eyes. The shutting of the front door seemed like the shutting of that to which she would not give a name, for terror's sake. As her husband's footsteps passed from the power of her strained ears to overtake them, she found herself wondering how they would sound when they passed for the last time from her presence, she lying under a load of flowers, with the final look of the sky turned compassionately upon her. Then she scorned herself—she was the most healthy-minded invalid who ever surmounted the morbidness of physical suffering—and thrust out her hands from her face, as if she were thrusting a camera which was using defective plates away from her brain.

"If he had only come in a minute!" she said, sobbing a little. "If he had only come in and kissed me good-night"—

She did not add: "He would have seen that I was too ill. He would not have left me."

The candle burned faintly, and grew more faint. There seemed to be smoke in the room. The baby stirred in his crib, and Pink, from the nursery, called, "Mummer dee!" in her sleep. The air grew so dense that it seemed to Jean to be packed about her like smothering wool. She rang the electric bell

for Molly, or she thought she did. But Molly did not answer, and the nursery door was shut.

There was nothing morbid in Jean's thoughts by this time; no more gruesome vision; no touching situation whatever presented itself; she did not see herself as a pathetic object; even her husband vanished from her consciousness. Kind or harsh—retreating footsteps or returning arms—light laughter on his lips or true love in his eyes—she thought of him not at all. He disappeared from her emergency like some diminishing figure that had fled from the field of a great battle. For the lonely woman knew now, at last, that she was wrestling with mortal peril. She had always wondered if she would know it from its counterfeits when it really came—there were so many counterfeits! She had asked, as all men ask, what it would be like. A long contention? A short, sharp thrust? Agony? Stupor? Struggle, or calm? Now she wondered not at all. There was nothing dramatic or exciting, or even solemn, in her condition. All her being resolved itself into the simple effort to get her breath.

Suddenly this effort ceased. She had struggled up against the pillows to call "Molly! Molly!" when she found that she could not call Molly. As if her head had been under water, the function of breathing battled, and surrendered. Then there befell her swiftly the most beatific instant that she had ever known.

"I am tired out," she thought; "and I am going to sleep. I did not die, after all." She was aware of turning her face, as her head dropped back on her pillows, before she sank into ecstasy.

The night was fair and cool. There was some wind, and the trees in the Park winced under a glittering frost. Avery noticed this as he hurried to Dr. Armstrong's. The leaves seemed to curl in a sensitive, womanish fashion, as if their feelings had been hurt before they received their death-stroke.

"It is the third of November," he thought. His feet rang on the sidewalk sharply, and he ran up the long steps with his gloved hand held to his cheek.

Physical pain always made him angry. He was irritable with Armstrong, who had none too good a temper himself; and the two men sparred a little before the dentist consented to remove the tooth.

Avery was surprised to find how short and simple an affair this was.

"I believe I 'll run into the Club," he observed as he put on his coat.

"Better go home," replied the dentist. "No? Then I 'll go along with you."

The two men started out in silence.

Avery looked across at the wining leaves on the trees of the Park. The tower of the Church of the Happy Saints showed black against the sky. The club was only around the corner, and he was glad of it, for the night felt unpleasantly cold to him; he shivered as he entered the hot, bright, luxurious place; it was heavy with tobacco; the click of billiard-balls and the clink of a glass sounded to his ear with a curious distinctness above the laughter and the chat with which the house seemed to rock and echo.

Romer was there—Tom Romer; and he was uncommonly glad to see Avery. The two gentlemen, with Armstrong and another man, grouped upon a game of billiards. Romer proposed whist, but Armstrong said it was too late for whist. Avery did not say anything, and he played stupidly, and after a while asked to be excused, and got up to go home.

"You 're looking fagged," observed Tom Romer, knocking the ashes from his cigar artistically. "You 're overworked. Most of you professional chaps are. Come yachting with me, on the Dream. We 're going to the Sound after ducks. Back in a week. Start at seven o'clock to-morrow morning. Stay and put up here, and get off with me. Oh! I forgot. You 're one of those married men."

"Yes," replied Avery, with a consciousness of superior virtue. "I could n't go without saying good-by to my wife. I wouldn't think of it for a moment," he added loftily. "Give me a minute, Romer, to think it over, will you?"

He strolled to the window, and looked out at the waters of the black river which rushed whirling past the rear of the clubhouse. It occurred to him that Armstrong watched him anxiously. But Armstrong did not speak.

"I 'll go—thanks!" said Avery, coming back, with his hands in his pockets. "I 'll get word to the office; they can manage without me, somehow—that is, if you 'll promise to get me back in a week?"

"I 'll set you ashore at the back yard of this club six days from to-morrow," answered Romer. "The Dream 's a dandy," added the yachtsman, swelling a little. "She can do it."

Avery replied absently, and hurriedly started for home. In fact, he ran most of the way (Dr. Armstrong could not keep up with him), for he was shocked to find that it was now one o'clock.

"Poor Jean!" he thought; "I stayed too long." Then he remembered for the first time that he had got to tell Jean that he was going. It occurred to him for a moment that he would rather give up going with Romer than tell Jean. But it was now too late to do that.

"You see," he said, stopping for Armstrong to overtake him, "I 've *got* to go, now." But Armstrong did not reply; he turned in at his own house with a manner which his friend felt to be superfluous. Avery experienced a certain resentment against the dentist. He was relieved to be alone, and walked more slowly.

When he came into his own hall, the house was perfectly still. He took off his shoes, and tiptoed upstairs, pausing at the door of his wife's room. She was sleeping so soundly that she did not hear him—an unusual circumstance, for Jean, though a good sleeper, as we said, was a light one. The husband was conscious that he had fallen on better chance than he deserved. He had expected to find her awake, and more or less nervous over his belated return.

"What luck!" he thought. Yes, he was really very glad that Jean was asleep, poor girl. She would take it hard—to-morrow. He moved about like a cat, packing his valise. He had several letters to write, too,—one to his

partner, one or two to clients, and one—well, why not? Why not write one to his wife? It would obviate a great deal of trouble on both sides; in fact, it would save him so much that he persuaded himself, without undue difficulty, that it would save her too. So he wrote the letter. It was a very affectionate letter. It set forth in the tenderest terms his devotion to her, and to her true interests, which, plainly, would be best served by some attention to his own health; he was really overworked; the Electric case had got where it could be left for a few days, and he would distinctly be gone but a few days; he promised her that—a week at the outside—and she was always so glad to have him get any sort of a vacation. He felt sure that he could count upon her sympathy in going. He would think of her constantly, and fly back to her with that constant—etc.—faithful, true, and tender—etc.—etc. He had to start so early in the morning that he would not wake her up. He would telegraph her from the first port they made. She must remember that the yacht was as safe as a Cunarder; they were only going to the Sound. He said nothing about ducks or guns. He gave her a Cape address to which she could send any message she chose. She must not get nervous. She must take the best care of herself for his sake. And he was her devoted husband.

He slipped this letter under her door—slept a few hours—and waked at five. At half-past five he crept downstairs, his valise in his hand, and his heart in his throat. He heard Pink talking and grinding her teeth in her sleep; but Jean did not stir, thank Heaven. He slid out of the front door like a burglar, and ran. It was a brisk morning, and promised to be a fresh southwesterly. He walked a little way in the direction of the club. Abruptly he stopped, turned, and ran back.

"It would n't do," he said; "I must see her; I must if the Dream sails without me. Let her sail!" he added. He pushed open the front door, and rushed noisily upstairs.

The family was astir; the baby was crying; Pink was trotting about the upper hall, unnoticed, in her little nightgown and bare feet. He did not hear Jean's voice, but Molly's struck upon his ear in an agitated, incoherent manner. He went in through his own room; he was relieved to find that the

letter under the door had not been disturbed. He caught it up, and slipped it swiftly into his pocket.

"It would not have done at all," he thought. He felt ashamed of himself that he had ever supposed for a moment it would have done. He really felt very thankful that he had decided to come back and break the news to her in person. It occurred to him that it was the least he could do under the circumstances. With a certain self-satisfaction on his face, he pushed his way into his wife's room.

Jean was not on the bed; she was lying on the lounge, across whose blue pillow he saw that the white silk Spanish shawl he gave her was tossed in a disorderly way. The lace frill of her nightdress was torn open at the throat. Her abundant yellow hair was loose, and partly concealed her face. She was imperfectly covered with a blanket that she had dragged with her from her bed in some desperate endeavor, whose pitiful story might never be known, to summon help.

"I did n't hear me bell!" cried Molly. "An' there she do be lyin' when I come in."

"Jean!" called Avery loudly; "*Jean!*"

## PART II

At the claim of his voice she responded; smiling, she stirred. He could not help remembering how she had once said, "If I were dead, I should answer you if you called me, Marshall." And for the moment, she had looked—but it was not death.

She opened her large eyes and regarded him—strangely, he thought, for the instant; then with the lambent look which belonged to Jean, and quite steadily. He knelt by her, and drew the blanket up, and buttoned the nightdress at her throat with clumsy fingers.

"I have come back to say"—he began. But he could not say it. "Have you had an ill turn?" he temporized.

"I don't know," said Jean.

"How did you happen to be on the lounge?"

"I don't know," repeated Jean.

"Are you suffering, dear?"

"I fell asleep," said Jean, after some thought.

"Don't you remember when you got out of bed?"

"I have had a wonderful sleep," said Jean. "I never had anything of the kind before. It was like heaven."

"Are you suffering now?"

"No—I think not—no. I feel pretty weak. But I am not suffering."

"Shall I call the doctor?"

"I sha'n't need the doctor. I don't want ... I don't need anybody but you."

She turned and put her hand to his cheek. Her long hair fell away from her face and revealed its expression; he turned his own away at sight of it.

"How early you are dressed!" she said, in a different tone.

"I was going out," he stammered. "I was—going away."

"Oh! *Going!* Where are you going?"

"I won't, if you don't want me to."

"You did n't say where you were going."

"Well, you see—Romer asked me to take a little trip with him. He thought I looked fagged out. He starts in—Jove! He starts in twenty minutes."

"And you have n't had any breakfast!" said Jean; her divine self-oblivion pushed to the front,—a trained soldier. But her chin trembled in a touching fashion that she had when she was too much grieved to say so, or too weak to admit that she was grieved.

He had risen from his knees and stood beside her, looking down. Her weakness and her loveliness seemed to lift themselves towards him like pleading things which he thrust off. He felt uncomfortable and irresolute. He was conscious of trying not to look annoyed.

"You are going in a boat?" she asked, very faintly now.

"Well—yes—a sort of boat." Avery fumbled fatuously. "It's quite a safe one," he added. "And Romer says"—He began to tell her what Romer said.

"And guns?" she whispered. "There will be guns?"

"Oh, I presume Tom has a gun," replied the husband, with what he felt to be an ingenious veracity. "You know I 'm no shot. I don't like guns much better than you do, dear.... I 'm getting late," he observed abruptly. "But I won't go, Jean, if you don't want me to. I thought it might set me up a little," he added, before she could reply.

In fact, she did not seem to incline to reply, or did not feel able to do so; he could not tell which. She lay looking up at him quite steadily. Molly had taken both the children into the nursery, and the two were alone. A clock ticked on the mantel in a loud, irritating tone. The white silk Spanish shawl which had fallen from the lounge hung to his coat-sleeve; it was a delicate thing, and the fringe clung like tendrils; he had to tear it off roughly.

He bethought him to wrap the shawl about her when he had done this, for she seemed to be cold. As he bent to perform for her this little service—which was offered with an obtrusive tenderness—he stooped and kissed her throat. The soft, sweet flesh quivered at his touch. Jean raised her weak

arms and clasped them about his neck. But they fell back instantly, as if the action had hurt her.

"Come, dear," he resumed hurriedly. "Shall I go—or not?"

"I don't feel *quite* well," faltered Jean. "I think—I slept too long—that heavenly sleep ... last night"—

"I 'll go and tell Romer I can't go," said Avery shortly. He started, and went half across the room, then paused. "Well, Jean?" he suggested. Jean did not reply. She was lying just as he had left her, with her arms fallen at her sides, her bright hair brushed back from her face, which looked strangely prominent and large. There was that in her eyes which a man would not have refused in a dog. The husband returned impetuously to her side.

"Poor Jean! I won't go. Really I won't. I 'll do just as you say—truly I will. Won't you say, Jean? Won't you express a wish?"

But Jean shook her head. The time had come when she had no wish to express; and she seemed not to have the strength to express even the fact that she had none.

"If you think it best ... for you" ... The words were inarticulate.

"I really do," urged Avery uncomfortably. "At least, I did—that is, unless you are actually too ill to spare me.... How is a man to know?" he muttered, not thinking she would hear.

"Good-by," breathed Jean. She did not try to lift her arms this time. He stooped and kissed her affectionately. Her lips clung to his. But her eyes clung longer than her lips. They clasped him until he felt that if he did not throw them off, he could not get away.

Across the room he paused. "I 'll send Thorne," he said. "I 'll send the doctor. I can't go unless I feel quite safe about you. And I 'll call Molly as I go down."

He tried to add something about telegrams, and how short a trip it was, and so on. But Jean's eyes silenced him. Solemn, mute, distant, they looked upon him like the eyes of an alien being moving through the experiences of an unknown world. For a moment their expression appalled him; it was not reproach; it was scarcely to be called anguish; rather a fine and tragic astonishment, for which speech would have been too coarse a medium. But he shut the door, caught Pink, who was crying for her breakfast, kissed the child, and went.

As he stepped out into the street, the morning air struck him a slap in the face. The wind was rising, and it hit him hard in the breast, as if it had the mind to push him back. He forced his way against it, and reached the club out of breath and with suffused face, as if he were blushing. He flung an order at the desk:—

"Telephone for Dr. Thorne. Tell him Mrs. Avery is n't feeling quite as well as usual, and I am unfortunately called away. He 'd better go right over to the house."

He dashed into the dining-room, poured out a cup of coffee, and hurried to the river-wall. The Dream lay off in mid-stream—a white seventy-footer schooner-rigged, with a new suit of sails that presented an almost startling brightness in the early morning light. The tender was already manned, and rowed in impatiently at his signal. He was fifteen minutes late. He said nothing to the crew, assuming the ready lordliness of a poor man who had never owned and would never own a yacht, but apologized rather unnecessarily to Romer when he got aboard, explaining the circumstances with more minuteness than was necessary.

"Why, great Scott, man!" said Romer. "I 'd have waited for you another day—any number of them—if Mrs. Avery lifted an eyelash. Put you ashore now, if you say so."

But Avery shook his head magnanimously. The yacht slipped her mooring and swung slowly into the channel, careened under the strong westerly, and slid away. It was uncommon for pleasure boats of the Dream's class to anchor in the river, but it had been Romer's whim; if he did not value playing *le bon prince* at the club, he liked to do the uncommon with

his yacht; he amused himself and his guest with the laggard process of getting out into the bay, pointing out the picturesqueness gained at the expense of time and trouble, and making himself entertaining—as Romer could—with the vivacity of a sportsman and the ingenuity of an accomplished host. Marshall Avery was not talkative, and replied with effort.

"We 'll have breakfast as soon as we 're through the draw," said Romer. It occurred to Avery that it would be impossible to eat. He sat with his eyes fixed on the housetops of the West End. In the early air and color this decorous section had a misty and gracious effect, half mysterious, wholly uncharacteristic of that architectural commonplace. There was the tower of the Church of the Happy Saints. And three blocks beyond—Molly would be just about bringing up the tray, and setting it on the invalid table beside the blue lounge.

"Somebody 's driving up back of the club," observed Tom Romer. "It's a buggy—looks a little like Thorne's, does n't it? Has those top wings. It's stopped at the river-wall." He handed the marine glass to his guest.

"All those doctors' buggies are alike," replied Avery. "I can't see very well," he added. In fact, the glass shook in his hand.

The yacht slipped through the draw comfortably, and headed to the harbor. The club, the river-wall, the buggy, vanished from the glass. The two gentlemen went below to breakfast. When they came on deck again, the Dream was easily clearing the harbor and making out to sea.

The wind was fair, and the yacht fled under full canvas.

"She walks right along!" cried Romer. He was exhilarated by the speed of his boat, which was, in fact, a racer, and built in all her lines to get over a triangular course in the least possible time. He talked about her safe points to the landsman (who responded with the satisfaction of ignorance), but the final end of the Dream's being was speed, unqualified by inferior

considerations. To this American idol, boats, like men, are sacrificed as matters of course. One scarcely makes conversation on so obvious a topic.

To tell the truth, Avery was not especially fond of yachting, and the careening of the Dream under the pleasant westerly did not arouse in him that enthusiasm which, somehow, he had expected to experience on this trip. When the water ran over the rail, he changed his seat to windward. When it rushed over, he held on to something. Tom Romer chaffed him amiably.

"Why, this is only a fair sailing day!" he cried. "Wait till it breezes up."

"Oh, I shall enjoy it if it comes," replied the lawyer. In fact, he was enjoying nothing. His thoughts surged like the water through which the yacht was driving. Their depth was enveloped and disguised in foam. When Romer said proudly, "She's making twelve knots!" his guest reflected, "I 'm so much farther away from her."

The same personal pronoun answered for the sportsman and the husband. Before the Dream was off Plymouth, the little cruise had assumed the proportions of an Atlantic voyage to the landsman's imagination.

By noon he remembered that in his hurry to get off he had made no definite provision with Jean about telegrams from, but only for messages to her. All that was arranged in the note, but he had torn up the note. With that leisurely appreciation of unpleasant facts which is so natural to the sanguine, and so incomprehensible by the anxious temperament, it occurred to him in the course of the afternoon that his wife had seemed much less well than usual when he bade her good-by; in fact, that he had never seen her look precisely as she did that morning. He began to acknowledge distinctly to himself that he wished he knew how she was.

He grew definitely uneasy as the early autumn twilight dulled the color of the water and the horizon of the distant shore. They were well on the Shoals now, for the breeze was stiff, and the yacht ran at a spanking pace. The wind was not going down with the sun, but rose strongly. The landsman began to be a little seasick, which somehow added to his moral discomfort.

"How can I get a telegram off?" he asked abruptly, much in the tone in which he would have called for a district messenger in the court-house.

"Oh, I might tap a cable for you, I suppose," returned his host, with twitching mustache. "Look here," added Romer. "What is it—*mal de mer*? or nostalgia? Do you want to be put ashore?"

"Not at all," replied Avery, with the pugnacity which men are accustomed to mistake for high ethical obligations to their own sex. "I only want to get a message to my wife. You see, I promised her."

"We 'll run into Wood's Hole in the morning, by all means," said Romer cordially. "It's a great place for ducks, anyhow, off there."

"Oh—ducks?" repeated Avery stupidly. He had forgotten that they came to kill ducks.

"We 're goin' to have a breeze o' wind," observed one of the crew, who was lowering the jib-topsail.

"I'd like to take the dispatch myself, when we get there, if I may," the seasick lawyer hazarded, somewhat timidly. But next morning, when the Dream dropped anchor off Wood's Hole, and the tender was lowered, he was flat in his berth. He could not take the dispatch, and a detail of two from the crew bounced off with it, pounding over the choppy sea. The frail and fashionable tender looked like one of the little Florida shells that are sold by the quart; there was now a considerable sea; the yacht herself was pretty wet. Romer was in excellent spirits.

"We might get a duck or two before breakfast, if it isn't too rough," he suggested. "Sorry you 're laid up."

"Oh—*ducks*?" repeated Avery again. He wished he could have a chance to forget that he had left his wife too ill to lift her head, and had come wallowing out here to kill ducks.

"I can't remember that a duck ever did me any harm," he said savagely, aloud.

He heard the occasional report of guns over his head with a sense of personal injury. Nobody hit any ducks, and he was glad of it. The Dream cruised about, he did not know where. He had ceased to feel any interest in her movements. He did not even ask where they had anchored for the night. The wind rose steadily throughout the day. As the force of the blow increased, his physical miseries ascended and his moral consciousness declined. His anxiety for his wife blurred away in a befuddled sense of his own condition.

"I don't believe she's any worse off than I am," he thought. This reflection gave him some comfort. He slept again that night the shattered sleep of the seasick and unhappy, and woke with a cry.

A port-hole of gray dawn darkened by green waters was in the stateroom, which seemed to be standing on its experienced and seaworthy head. The yacht was keeling and pitching weakly. Tom Romer stood beside the berth, looking at his guest; he did not smile. It was an uncommon thing to see Tom Romer without a smile. The yachtsman wore oilskins and a sou'wester, and dripped with salt water like a Grand Banker.

"God! Romer, what's the matter?" Avery got to his feet at once. He forgot that he was seasick. His bodily distresses fled before the swift, strong lash of fright.

"The fact is," replied Romer slowly, "we 've struck a confounded gale—a *November* gale," he added. "It's turned easterly. She 's been dragging her anchor since two. Now"—

"Now what?" demanded Avery sharply. He staggered into his clothes without waiting for an answer.

"Well—we 've snapped our road."

"Road?" The landsman struggled to recall his limited stock of nautical phrases. "That's the rope you tie your anchor to? Oh! What are you going to do?" he asked, with unnatural humility. The fatal helplessness of ignorance overwhelmed him. If he ever lived to get back, he would turn the tables, and conduct Romer through a complicated lawsuit.

"Run into the Sound if I can," returned Romer. "It won't do to get caught on some of these shoals round here."

"Of course not," replied Avery, who did not know a shoal from a siren. "Say, Romer, what's the amount of danger? Out with it!"

"Oh, she's good for it," said the yachtsman lightly. Then his voice and manner changed. His insouciant black eyes peered suddenly at his guest as if from a small, keen, marine lens.

"Say, old fellow," he said slowly, "I hope there was n't any sort of a quarrel,—you know,—any domestic unpleasantness, before you came on this trip? I wish to blank I 'd left you ashore."

"Quarrel? A demon could n't quarrel with my wife!" exploded Avery.

"That was my impression," returned his host. "Beg pardon, Avery. You see—to be honest, I can't say exactly how we 're coming out of this. There are several things which might happen. I thought"—the sportsman stammered, and stopped.

"If you should pull through and I should n't," said Avery, lifting a gray face,— "I 'm not a swimmer, and you are,—tell her I 'd give my immortal soul if I had n't left her. Tell her—I—God! Romer, she was very sick! She did n't want me to go."

"I 've always thought," said the bachelor, "that if *I* had a wife—a woman like that"— His face hardened perceptibly, dripping under his sou'wester. "You fellows don't know what you 've got," he added abruptly. He scrambled up the companionway without looking back. Avery followed him abjectly.

At this moment the yacht groaned, grated, and keeled suddenly. Water poured over the rail. The deck rang with cries. Avery got up, and held on to something. It proved to be the main-sheet. It ran through his fingers like a saw, and escaped. Confusedly he heard the mate crying:—

"We 've struck, sir! She 's stove in!"

"Well," replied the owner coolly, "get the boats over, then."

He did not look at his guest. Avery looked at the water. It seemed to leap up after him, like a beast amused with a ghastly play. Oddly, he recalled at that moment coming in one day—it was after she knew what ailed her—and finding Jean with a book face down on her lap. He picked it up and read, "*The vision of sudden death*." He had laughed at her, and scolded her for filling her mind with such things.

"You don't *quite* understand, dear," she had answered.

"Come," said Romer, whose remarkable self-possession somehow increased rather than diminished Avery's alarm, "we have n't as much time to spare as I would like. Hold hard there while Mr. Avery gets aboard!"

The tender was prancing like a mustang on a prairie, for there was really a swamping sea. The landsman was clumsy and nervous, missed his footing, and fell.

As he went under he cried, in a piercing voice, "*Tell my wife*"— When the water drove into his throat and lungs, he thought how he had seen her fight for her breath, patiently, hours at a time. She had told him once that it was like drowning.

It was two days after this that a man who attracted some attention among the passengers got off the Shore train at the old station in the city.

Marshall Avery seemed to himself to see this man as if he saw another person, and felt a curious interest in his appearance and movements. The man was dressed in borrowed clothes that did not fit; his face was haggard and heavily lined; he had no baggage, and showed some excitement of manner, calling several hackmen at once, and berating the one he selected for being too slow. A kind of maniacal hurry possessed him.

"Drive for your life!" he said. He did not lean back in the carriage, but sat up straight, as if he could not spare time to be comfortable. When the hack door slammed Avery saw the man no more, but seemed to crouch and crawl so far within his personality that it was impossible to observe the traveler from the outside.

Avery had never in his life before been in the throat of death, and been spewed out, like a creature unwelcome, unfit to die. The rage of the gale was in his ears yet; the crash of the waves seemed to crush his chest in. Occasionally he wiped his face or throat, as if salt water dashed on it still. He had made up his mind definitely—he would never tell Jean the details. She would not be able to bear them. It might do her a harm. He would simply say that the yacht got caught in a blow, and struck, and that the tender brought him ashore. She would not understand what this meant. Why should she know that he went overboard in the process? Or what a blank of a time they had to fish him out? Or even to bring him to, for that matter? Why tell her how long the tender had tossed about like a chip in that whirlpool? It was unnecessary to explain hell to her. To say, "We snapped an oar; we had to scull in a hurricane," would convey little idea to her. And she would be so distressed that one of the crew was lost. The Dream was sunk. Romer had remained on the Cape to try to recover the body of his mate. He, Marshall Avery, her husband, had been saved alive, and had come back to her. What else concerned, or, indeed, what else could interest her? In ten minutes nothing would interest either of them, except that he had her in his arms again.... Jean! He thrust his face out of the hack window and cried:—

"Drive faster, man! I 'm not going to a funeral."

The driver laid the whip on and put the horse to a gallop. The passenger leaned back on the cushions now for the first time and drew a full breath.

"Jean!" he repeated, "Jean! *Jean!*"

The tower of the Church of the Happy Saints rose before his straining eyes against the cold November sky. It was clear and sunny after the storm; bleak, though. He shivered a little as he came in sight of the club. A sick distaste for the very building overcame him. A flash of the river where the

Dream had anchored glittered between the houses. He turned away his face. He thought:—

"I wonder when she got the telegrams?" The first one must have reached her by noon of the second day out. This last, sent by night delivery from the little Cape village where the shipwrecked party had landed (he had routed out the operator from his bed to do it)—this last telegram ought to have found her by breakfast-time. She would know by now that he was safe. She might have had—well, admit that she must have had some black hours. Possibly the papers—but he had seen no papers. It had been a pity about the telephone. He had searched everywhere for the Blue Bell. He had found one in a grocery, but the tempest had gnawed the long-distance wire through. He would tell her all about it now in six minutes—in five—poor Jean!

No—stop. He would carry her some flowers. It would take but a minute. She thought so much of such little attentions. The driver reined up sharply at the corner florist's; it was Avery's own florist, but the salesman was a stranger, a newcomer. He brought a dozen inferior tea-roses out with an apology.

"Sorry, sir, but they are all we have left. We 've been sending everything to Mr. Avery's."

Avery stared at the man stupidly. Was Jean entertaining? Some ladies' lunch? Then she was much better. Or was she so ill that people were sending flowers, as people do, for lack of any better way of expressing a useless sympathy? He felt his hands and feet turn as cold as the seas of Cape Cod.

"Drive slower," he said. But the fellow did not hear him, and the hack rushed on. At the passenger's door it stopped with a lurch. Avery got out slowly. The house looked much as usual, except that a shade in Jean's bedroom was drawn. It was just the hour when she sometimes tried to sleep after an ill night. The husband trod softly up the long steps. He felt for his latch-key, but remembered that he had never seen it since he went overboard. He turned to ring the bell.

As he did so something touched his hand disagreeably; a gust of November wind twisted it around and around his wrist. Avery threw the thing off with a cry of horror.

He had leaned up heavily against the door, and when Molly opened it suddenly, he well-nigh fell into the house.

"Oh, sir!" said Molly. She had been crying, and looked worn. He stood with his tea-roses in his hand staring at her; he did not speak. He heard the baby crying in the nursery, and Pink's little feet trotting about somewhere. The house was heavy with flowers,—roses, violets, tuberoses,—a sickening mixture of scents. He tried several times to speak, but his dry throat refused.

"What's happened?" he managed to demand at last, fiercely, as if that would help anything.

"The doctor's here. He 'll tell you, sir," said Molly. She did not look him in the eye, but went softly and knocked at the library door. Avery started to go upstairs.

"Oh, Mr. Avery," cried Molly, "don't you do that; don't you, sir!"

Then Dr. Thorne stepped out of the library. "Wait a minute, Avery," he said, in a quiet, matter-of-fact tone, which at once restored Avery's composure. "Just come in here before you go up, will you?"

Marshall Avery obeyed. He stepped into the library. And Dr. Thorne shut the door.

The two men regarded each other for a moment in surcharged silence. The distracted husband stood trembling pitiably. He passed his left hand over his eyes, then pushed it over his right wrist several times, as if he were pushing away an obstruction.

"I don't seem to be quite right in the head, Thorne," he pleaded. "I thought there was—something on the doorbell.... I 've been shipwrecked. I

'm not—just myself.... Why don't you speak to me? *Doctor! Doctor!*"

"I find it—difficult," replied the experienced physician, with embarrassment. "The case is—unusual. Mrs. Avery"—

"Give me the worst!" cried the tortured man.

"That is impossible," said Esmerald Thorne, in a deep voice. He turned away and went to the window, where he stood looking out into the back yard. Kate was hanging out some sheets and other bedding. Avery noticed this circumstance—he had got up and stood behind the doctor—as people notice the pettiest items in the largest crises of their lives. A small fluttering white thing on the line arrested his attention. It was the silk Spanish shawl which he had given his wife.

He put out his hand—groped, as a seeing man suddenly smitten blind will grope—and, fumbling, found the doctor's arm and clutched it. Then he toppled; his weight came heavily, and the physician caught him before he struck the floor.

He pushed the brandy away from his lips and struggled up. Even at that moment it occurred to him that Esmerald Thorne looked at him with something like aversion.

"When did she die?"

"Yesterday."

"What time?"

"At the ebb of the tide. It was eleven o'clock in the morning."

"Who was with her?"

"The servants."

"Oh, my God, Thorne! Nobody else? Were n't you there?"

"I got there.... I doubt if she knew it.... It was only twenty minutes before the end. Hush! Avery, hush! Don't groan like that, man. Nobody is to blame. If only—you"— Dr. Thorne checked himself, savagely, as he did when he was moved beyond endurance.

"Oh, I take it all!" cried Avery. He stooped as if he bent his broad shoulders to receive some mighty burden. "I shall carry it *all* ... forever. Men have gone mad," he added, more calmly, "for much less than I have got to face."

"If you find yourself strong enough," said the physician, "I shall try to put you in possession of the facts." Again, as before, Avery thought he noticed an expression of aversion on the countenance of his old friend. Cowering, he bowed before it. It was part of his punishment; and he had already begun to feel that nothing but a consciousness of punishment could give him any comfort now.

"Will you go up and see her first?" asked Dr. Thorne, as if to gain time. "She looks very lovely," he added, with quivering lip.

But the room rang to such a cry as the man of mercy—used to human emergency, and old before his time in the assuagement of human anguish—had never heard.

It softened Dr. Thorne a little, and he tried to be more gentle. He did not succeed altogether. Iron and fire were in the doctor's nature, and the metal did not melt for Marshall Avery.

He began quietly, with a marked reserve. Mrs. Avery, he said, had been very ill on the morning that her husband started. He had hurried to the house, as requested; her condition was so alarming that, after doing what he could to relieve her, he had driven rapidly to the river-wall back of the club, hoping to signal the yacht before it was out of reach; he had even dispatched some one in a row-boat, and some one else on a bicycle, hoping to overtake the Dream at the draw. The patient must have been low enough all night; and being subject to such attacks—

"I had warned you," said the physician coldly. "I explained to you the true nature of her condition. I have done my best for a year to prevent just this catastrophe.... No. I don't mean to be a brute. I don't want to dwell on that view of it. You don't need my reproaches. Of course you know how she took that trip of yours. When the storm came up, she—well, she suffered," said the doctor grimly. "And the wreck got into the papers. We did our best to keep them from her. But you know she was a reading woman. And then her anxiety.... And you hadn't given us any address to telegraph to. When she began to sink, we could not notify you. I should have sent a tug after you if it had n't been for the gale— What do you take me for? *Of course* I provided a nurse. And my wife would have been here, but she was out of town. She only returned last night. Helen did n't get here in time, either. It was most unfortunate. I sent the best woman I could command. My regular staff were all on duty somewhere. That was the infernal part of it. I had to take this stranger. I gave her every order. But Mrs. Avery seemed to rally that morning. She deceived us all. She deceived me; I admit it. The woman must needs take her two hours off just then—and Mrs. Avery got hold of the paper. That's the worst of it. She read the account of the wreck all through. You see, the reporters gave the party up. She was unconscious when I got here. Once she seemed to know me. But I cannot honestly say that I believe she did. I don't think I have anything more to say. Not just now, anyhow." Esmerald Thorne turned away and looked out of the window again, tapping on the sill with his fingers—scornfully one might have said.

"We made the best arrangements we could. Some relatives telegraphed. And the interment"—

"Oh, have some mercy, Thorne! I have borne all I can—from *you*." ...

"Esmerald?" As if a spirit had stirred it, the library door opened inwards slowly. A womanly voice embodied in a fair and stately presence melted into the room.

"Oh, my dear! my dear!" said Helen Thorne. "Leave him to *me*."

As the stricken man lifted his face from the lash of his fellow-man, the woman put out her hands and gathered his, as if he had been a broken child.

"Oh," she said, "don't take it so! Don't think of it *that* way. It would break Jean's heart.... She loved you so! ... And she knew you did n't know how sick she was. Any wife would know that—if her husband loved her, and if she loved him. And you did love her. And she knew you did. She used to tell me how sure she was of your true love—and how precious it was to her, and how much she ... cared for you."

Helen's voice faltered on these last three words; she pronounced them with infinite tenderness; it was the pathos of woman pleading for womanhood, or love defending love.

"And she would n't want you to be tortured so—*now*. Oh, she would be the first of us all to forgive you for any mistake you made, or any wrong you did. She would understand just how it all came about, better than any of us can—better than you do yourself. Jean always understood. She wanted nothing, nothing in this world, but for you to be happy. She was so grieved because she was sick, and could not go about with you, and make it as cheerful for you at home as she used to do. She used to tell me—oh, she used to tell me so many things about how she felt, and every feeling she ever had was purer and tenderer and truer than the feeling of any other woman that I ever knew! She was the noblest woman—the loveliest, ... and she loved *you*.... Why, she could n't bear it—she could n't *bear* it, dead up there as she is, if we let you suffer like this, and did not try ... if I did not try to comfort you."

Helen's own tears broke her choking words. But the heart-break of the man's sobs came now at last; and they had such a sound that the doctor covered his eyes, and stood with bowed head, as if he had been the culprit, not the judge, before the awful courts of human error, remorse, and love, in which no man may doom his fellow, since God's verdict awaits.

"Come, Mr. Avery," said Helen. She stooped and picked up the tea-roses, which had fallen and were scattered on the floor, put them into his cold hand—and then drew away. "She 'd rather you would go up alone," said Helen Thorne.

He passed out through the open door. His two friends fell back. The children could be heard in the dining-room: Molly was trying to keep them

quiet there. It seemed to him as if he waded through hot-house flowers, the air was so thick with their repugnant scent. He crawled upstairs, steadying himself by the banister. The hall below looked small and dark, like a pit. His head swam, and it occurred to him that if he fell he would fall to a great depth. He clung to the wretched tea-roses that he had brought her. He remembered that this was the last thing he could ever do for her.

Outside the door of her room he stopped. His lips stirred. He found himself repeating the old, commonplace words wrung from the despair of mourners since grief was young in the story of the world:—

"It is all over. This is the end."

"No," said a distinct voice near him, "it is not the end."

Starting, he stared about him. The hall was quite empty, above and below. The nursery door was closed. The children and Molly could be heard in the dining-room. No person was within the radius of speech with him. The door of Jean's chamber was shut.

The roses shook in his hand.

### **PART III**

Avery stood irresolute. "It is one of those hallucinations," he thought. "This shock—following the wreck—has confused me." The voice was not repeated; and after a few moments' hesitation he opened the door of his wife's room.

It was neither dark nor light in the chamber; something like twilight filled the room, which, unlike the house, was not heavy with the excessive perfume of flowers. A handful of violets (modest, winning, and like Jean) was all that had been admitted; these stood on a table beside her Bible and prayer-book, her little portfolio, and her pen and inkstand.

In his wretchedness Marshall duly perceived the delicate thought which had ordered that his should be the first flowers to touch her dear body.

He came up with his poor roses in his hand. Jean seemed to have waited for them. He could have said that she uttered a little, low laugh when she saw him cross the room.... Impossible to believe that she did not see him! She lay so easily, so vitally, that the conviction forced itself upon him that there was some hideous mistake. "Perhaps I am still in the water," he thought, "and this is one of the visions that come to drowning people."

"I may be dead, myself," he added. "Who knows? But *Jean* is not dead." He thrust up the shade, and let the November day full into the room. It fell strongly upon her bright hair and her most lovely face. He called her by her name two or three times. It might be said that he expected her to stir and stretch out her hands to him.

"I never thought you would die," he argued. "You know I did n't, Jean. Why, you told me yourself you should live for years.... Jean, my girl! they 've blundered somehow. You *could n't* die, you *would n't* die, Jean, while I was on that cruel trip.... I was sorry I went. I was ashamed of myself for leaving you.... I hurried back—and I was shipwrecked—I was almost drowned. I 'll never leave you again, dear darling! I 'll never leave you again as long as I live!"

These words ached through his mind. He could hardly have said whether he spoke them aloud or not. He sat down on the edge of the bed beside her. By some carefulness, probably Helen Thorne's, the usual ghastly circumstance of death was spared Jean. She lay quite naturally and happily in her own bed, in her lace-frilled night-dress, with her bright hair braided as she used to braid it for the night. Except for her pallor—and she had been a little pale so long that this was not oppressive—she wore one of her charming looks. The conviction that she was not dead persisted in the husband almost to the point of pugnacity. It occurred to him that if he lifted her she would cling to him, and comfort herself against his heart.

"Come, Jean!" he said. He held out his arms. "Forgive me, Jean.... I shall never forgive myself."

Then he stooped to kiss her; and *then* he slid to his knees, and hid his face in his shaking hands, and uttered no cry, nor any word or sound.

He was so still, and he was still so long, that his friends took alarm for him, and Helen Thorne quietly opened the door. When she saw him, she retreated as quietly, went downstairs, and called his little girl.

Pink trotted up noisily as Pink always did, hurried to her mother's room, and hesitated on the threshold. When she said "Hullo, Papa!" her father turned and saw her standing there. He made an instinctive movement towards her; the child ran to him; he caught her, and kissed her little hands and hair, and Pink said: "Crying, Papa? Have you got 'e toofache? ... Come to Mummer Dee. She 'll comfort you."

Into the Church of the Happy Saints, where Jean was used to worship (for she was a religious woman, in her quiet, unobtrusive way), they carried her for her last prayer and chant. And it was noticed how many people there were among the mourners of this gentle lady to whom she had done some kindness, forgotten by every one except themselves, or, more likely, not known to any one else; obscure people, those who had not many friends, and especially sick people, the not helpless, but not curable, whom life and death alike pass by. In her short, invalid life Jean had remembered everybody within her reach who bore this fate; and it would never be known now in what sweet fashion she had contrived to make over to these poor souls a precious portion of her abounding courage, or the gift of Jean's own sympathy. This was something quite peculiar to herself. It was finer than the shading of words in a poem, as reverent as the motion of feeling in a prayer, and always as womanly as Jean.

He who followed her to her burial in such a trance of anguish as few men know who love a wife and cherish her (as so many do, that women may well thank Heaven for their manly number),—he who had loved, but had not cherished, looked into Jean's open grave, and believed that in all the world he stood most desolate among afflicted men.

"I left her to die alone," he said. He grasped Pink's little hand till he hurt the child, and she wrenched it away. He did not even notice this, and his empty hand retained its shape as the little girl's fingers had left it. "I went on a gunning trip. And she asked me not to go. And she died alone." ...

The clergyman's voice intoning sacred words smote upon and did not soothe this comfortless man.

*"He that believeth on Me." ...*

"Jean believed on me. And I failed her. And she is dead."

Pink crept up to his side again, and put her fingers back into his still outstretched hand. Perhaps it was the child's touch; perhaps—God knew—it was some effluence from the unseen life within whose mystery the deathless love of the dead wife had ceased from the power of expression; but something at that instant poured vigor into the abjectly miserable man. His first consciousness that Jean was not dead rushed back upon him at the mouth of her grave. It seemed, indeed, no grave, but a couch cut in a catafalque of autumn leaves.

"There is some mistake," he thought, as he had thought before. He lifted his bared head to the November sky in a kind of exaltation.

This did not fail him until he came back into his desolate home. He stood staring at the swept and garnished house. The disarray of the funeral was quite removed. His wife's room was ordered as usual; its windows stood open. Some of the dreadful flowers were still left about the house. He pulled them savagely from their places and threw them away. The servants stood crying in the hall; and the strange professional nurse, who had remained with the baby, came up and offered him the child—somewhat as if it had been a Bible text, he thought. He took the little thing into his arms, piously; but the baby began to cry, and hit him in the eyes with both fists.

"It's after her he do be cryin'," said Molly.

Avery handed her the child in silence. As he turned to go upstairs, Pink ran after him.

"Papa," said Pink, "do you expect Mummer Dee to make a very *long* visit in heaven? I should fink it was time for her to come home, by supper, shouldn't you, Papa?"

In their own rooms Marshall Avery sat him down alone. He bolted all the doors, and walked from limit to limit of the narrow space—his room and hers, with the door open between that he used to close because the baby bothered him. It stood wide open now. In his room some of his neckties and clothes were lying about; Jean used to attend to his things herself, even after she was ill—too ill, perhaps; he remembered reminding her rather positively if any of these trifles were neglected; once she had said, "I 'm not *quite* strong enough to-day."

On his bureau stood her photograph, framed in silver—a fair picture, in a white gown, with lace about the throat. It had Jean's own eyes; but nothing ever gave the expression of her mouth. He stood looking at her picture.

Presently he put it down, and came back into his wife's room. He shut the windows, for he shivered with cold, and stared about. The empty bed was made, straight and stark. The violets were drooping on the table beside her Bible, her basket, and her portfolio. He picked these things up, and laid them down again. He went mechanically to the bureau and opened the upper drawer. All her little dainty belongings were folded in their places,—her gloves, her handkerchiefs, the laces that she fancied, and the blond ribbons that she wore—the blue, the rose, the lavender, and the corn.

In this drawer a long narrow piece of white tissue-paper lay folded carefully across the glove box. He opened it idly. Something fell from it and seemed to leap to his fingers, and cling as if it would not leave them. It was a thick lock of her own long bright hair.

He caught it to his breast, his cheek, his lips. He cherished it wildly, as he would now have cherished her. The forgotten tenderness, the omitted gentleness of life, lavished itself on death, as remorse will lavish what love passed by. The touch of her hair on his hands smote the retreating form of his illusion out of him. He could not deceive himself any longer.

"Jean is dead," he said distinctly.

He threw himself down on her lounge and tried to collect himself, as he would for any other event of life—that he might meet it manfully.

"She is really dead," he repeated. "I have got to live without her, ... and those children ... no mother. I must arouse myself. I must bear it, as other men do."

Even as the words turned themselves like poisoned wires through his mind the conviction that his sorrow was not like the sorrow of other men rushed upon him. What had he done to her? Oh, what had he been to her—his poor Jean? He turned his head and thrust his face into the depths of her blue pillow. A delicate breath stole from it—the violet perfume that Jean used about her bedroom because he fancied it. He sprang from the lounge, and began to pace the room madly to and fro.

Now there rose about him, wave by wave, like the rising of an awful tide, the overlooked but irresistible force of the common life which married man and woman share—incidents that he would rather have died than recall, words, looks, scenes, which it shattered his soul and body to remember.

A solemn sea, they widened and spread about him. He felt himself torn from his feet and tossed into the surge of them.

It seemed to him that every tenderness he had shown his wife was drowning out of his consciousness. But every hard thing he had ever done rose and rolled upon him—an unkind look, a harsh word, a little neglect here, a certain indifference there; an occasion when he had made her miserable and could just as easily have made her happy; a time when she had asked—Jean so seldom asked—for some trifling attention which he had omitted to bestow; the desolate look she wore on a given day; the patient eyes she lifted, heart-sick with sore surprise, once when he ...

The worst of it was in thinking how it was when she began to be weak and ill. Jean was not a complaining woman, never a whining invalid, but resolute, sweet, and cheerful. Like an air-plant on oxygen, she existed on his tenderness. He had offered it to her when he felt like it. Well, busy, bustling man—out of his bounteous health and freedom, what comfort had

he given to this imprisoned woman? The passing of his moods? The attention of his whims? The fragments of his time? The blunt edge of his sympathy?

One night he had come in late, when he could quite as well have come two hours before; he found her by the open window, gasping for breath in the cold night air, in her blue gown, with her braided hair, her lovely look, the dear expression in her eyes. She had not reproached him ... he wished from his soul, now, that she *had* reproached him, sometimes; it would have done him good; it would have dashed cold water on his fainting sense of duty to her; he was the kind of man who would have responded to it like a man. But she was not the kind of woman to do it. And she never had. So he had slid into those easy habits of accepting the invalid, anyhow; as a fact not to be put too much in the foreground of his daily life ... not to intrude too much. And she had not protested, had not cried out against the frost that gathered in his heart.

She had trodden her *via dolorosa* alone. As she had endured, so she had died. He thought that if he had only been with her then, he could have borne it all.

His mind veered off from this swiftly, almost as if it were unhinged, and began to dwell upon what he would do for her if he had her again, living, warm, breathing, sweet. The only comfort he could get was in thinking how he would comfort her ... now; how he would cherish her ... now; the love he would waste, the tenderness he would invent—new forms of it, that no husband in the world had ever thought of, to make a wife happy. Oh, the honor in which he would hold her least and lightest wish! The summer of the heart in which she should blossom!—she who had perished in the winter of his neglect; she who was under the catafalque of autumn leaves out there in the gathering November storm. Terrible that it should storm the first night that Jean lay in her grave!

"God! God!" he cried. "If I could have her back for one hour—for one *instant!*"

"This way, Avery—turn your head this way. Here is the air. The window is open. Don't struggle so. It is all right. Breathe naturally," added the dentist. "Come, take it quietly. There is no harm done. The tooth is out. I never knew the gas work more easily."

Marshall Avery battled up and pushed his friend away. The cold air, dashing in from the open window, chafed his face smartly. He drank it in gulps before he could manage to speak. It was raining, and the storm wet the sill. A few drops spattered over and hit his hand.

"Armstrong!—for Heaven's sake!—if there's any mercy in you"—

"That's a large phrase for a small occasion, Avery. I have n't committed murder, you know."

"I 'm not so sure of it," muttered Avery, staring about. "I don't understand. Did I have another tooth out—after all that—happened?"

"I should hope not. I must say you make as much fuss over this one molar as a child or a clergyman," answered the dentist brusquely. "We regard those as our most troublesome classes."

"Did you give me chloroform?"

"I don't give chloroform."

"Gas, then?"

"Why, certainly, I gave gas."

"Did I ask for it?"

"Yes. You asked for it. Even if you had n't—You don't bear pain, you know, Avery, with that composure"—

"Armstrong? Say, Armstrong. When you went over to the club with me"—

The dentist twisted his mustache.

—"was Romer's yacht lying out in the river then? I seem to remember that you did n't want me to take that trip. And you did n't know it would blow a gale, either. And you did n't know that she"—

"Get up, Avery, and walk about the room. You come to slowly."

"And when the wreck got into the papers—she could n't bear that.... She was so ill when I left her ... Armstrong! Was it you kept me here in this blanked chair while my wife was dying?"

Dr. Armstrong laughed aloud. Avery sprang towards him. He had a muddy intention of seizing the dentist by the throat. But a thought occurred to him which held him back. Now, as his consciousness clarified, he saw brilliant and beautiful light throbbing about him; he seemed to float in it, as if he were poised in mid-heaven. A scintillation in his brain shot into glory, and broke as it fell into a thousand rays and jets of joy.

"Do you mean to tell me I never went on that accursed cruise—with a fool gun—to murder ducks ... and left my wife dangerously sick? Do you mean that Jean ... is n't ... Say, Armstrong, you would n't make game of a man in a position like mine, if you knew... Armstrong!" piteously, "my wife is n't *living*—is she, Armstrong?"

"She was, the last I heard," replied the dentist, sterilizing his instruments with a cool and scientific attention. "That was when you sat down in this chair to have your tooth out."

As Avery dashed by him the dentist put out a detaining hand.

"Wait a second, Avery. I don't consider you quite fit to go yet. Here—wait a minute!"

But the horses of Aurora, flying and flaming through the morning skies, could not have held the man back. A madman—delirious with joy—he swept through the hall and flung the door open. Dr. Armstrong ran after him to give him his hat, but Avery paid no attention to the dentist.

Bareheaded, fleet-footed, with quivering lip, with shining eye, he fled down the street. Like the hurricane that had never sunk the Dream, he swept past the club. He saw the fellows through the window; their cigars gleamed in their mouths and in their hands; they looked to him like marionettes moving on a mimic stage; he felt as if he would like to kick them over, and see if they would rattle as they rolled. As he rushed, hatless, past the Church of the Happy Saints, an officer on night duty recognized the lawyer, and touched his helmet in surprise, but did not follow the disordered figure—Mr. Avery was not a drinking man. He was allowed to pursue his eccentricity undisturbed. He met one or two men he knew, and they said, "Hilloa, Avery!" But he did not answer them. He ran on in the rain; his heart sang:—

"I did n't do it—I *never did it!* I did not treat her so. *I was not that fellow.* Oh, thank God, I was not that brute!" He hurried on till he lost his breath; then collected himself, and came up more quietly to his own door.

He felt for his latch-key, and was relieved to find it in his pocket, as usual; the impression that it lay off the Shoals somewhere at the bottom had not entirely vanished yet. He opened the door and closed it softly. The hall gas was burning. Otherwise the house was dark. It was perfectly still. The silence somewhat checked his mood, and the violence of his haste abated; with it abated an indefinable measure of his happiness. He raised his hand to take off his hat; then found that he had not worn any. It occurred to him that he had better not waken Jean too abruptly—it might hurt her: he was going to be very thoughtful of Jean. She must not be startled. He went upstairs quietly.

In the upper hall he paused. Pink, in the nursery, was grinding her teeth in her sleep. The baby was not restless, and Molly was sleeping heavily. From his wife's room there came no sound.

Jean almost always waked when he came home late, if indeed she had slept at all before she heard his step. But this was not inevitable. Sometimes he did not arouse her. And he remembered that to-night she had been feeble, and had not got to sleep as early as usual. As he stood uncertain before her door the clock on the mantel struck eleven.

He passed on, and into his own room. He wondered if he ought to undress and go to bed without disturbing her. But he could not bring himself to do this. He was still too much agitated; and the necessity of keeping quiet did not tend to calm him. He turned up his gas, and the light rose warmly. Then he saw that the door into his wife's room was partly open. "Jean!" he said softly. She did not answer him. Sometimes, if she were sleepy, or exhausted, she did not incline to talk when he came home.

"Jean?" he repeated, "are you awake, my darling? I want to speak to you.... I *must* speak to you," added the husband impetuously, when Jean did not reply.

He pushed the door wide and went in. The only light in the room came from the night candle, which was burning dimly. It was a blue candle, and it had a certain ghastly look to him, as he stood gazing across the little table at the bed.

"After all," he thought, "I suppose I ought not to wake her—just because I 've got all that to tell her."

He stood, undecided what to do.

Jean was lying on the bed in her lace-frilled nightdress, with her bright hair braided in long braids, as she wore it for the night. Something in her attitude and expression startled him. So she had lain—so she had looked—His temples throbbed suddenly. The blood froze at his heart.

"Jean!" he cried loudly. "*Dear* Jean!"

But Jean did not reply. He sprang to her, and tore open the nightdress at her throat; he crushed at her hands; they were quite cold. He put his ear to her heart; he could not hear it beat. Jean lay in her loveliness, with gentle, half-open eyes, and a desolate little smile on her sweet lips, as she might have looked when she called him and asked him to come back and kiss her good-night. And he had not come. One of her hands clasped the cord of the electric bell. But no one had heard Jean's bell.

Now, the truth smote the man like the hammer of Thor. His wandering spirit—gone; who knew how? who knew where? while the brain drifted into anæsthesia—had sought out and clutched to itself the terrible fact. At the instant when this perception reached his consciousness there came with it the familiar delusion of his vision.

"Jean cannot be dead. There must be some mistake."

He dashed to the window, opened it wide, and raised her towards the air. The sleeping maid, aroused and terrified, rushed to his help. In his agony he noticed that the children were both crying—Pink like a lady, and the boy like a little wild beast. Pink began to wail: "Mummer Dee! Mummer Dee!"

Jean did not stir.

He dispatched the servants madly—one to the telephone, one for stimulants; while he rubbed his wife's hands and feet, and tried to get brandy between her lips in the futile fashion of the inexperienced. He could not stimulate any signs of life, and he dared not leave her. Molly reported, sobbing, that Dr. Thorne was not at home, but that Mrs. Thorne had bade her call the nearest doctor; she had rung up the one at the corner, and he was coming.

The nearest doctor came, and he lost no time about it. He was a stranger, and young. Avery looked stupidly at his inexperienced face. The physician stooped and put his ear to Jean's heart. He went through the form of feeling the pulse, and busied himself in various uncertain ways about her. In a short time he rose, and stood looking at the carpet. He did not meet the husband's eye.

"You can keep on stimulating if you like," he said. "Perhaps you would feel better. But in my opinion it is of no use."

"For God's sake, man, are n't you going to *do* something?" demanded the husband in a voice which the nearest doctor had occasion to remember.

"In my opinion the patient is dead," persisted the stranger. He turned and took up his hat. "I will do anything you like, of course, sir," he added

politely. "But life is extinct."

Avery made no reply, and the strange physician went uncomfortably away. Avery stared after him with bloodshot eyes. He now held his wife, half sitting, against his own warm body; he had a confused idea that he could will her alive, or love her alive; that if he could make her understand how it all was, she *could* not die. She loved him too much. But Jean's gray face fell upon his breast like stiffening clay. Her pulse was imperceptible. He turned piteously to the Irish girl.

"Molly! Can't *you* think of anything more we can do for her?"

At this moment a carriage dashed to the door, and came to a violent stop.

"Mother of God!" cried Molly. "Here is Dr. Thorne!"

With a resounding noise Esmerald Thorne flung back the opening front door. With his hat on his head he cleared the stairs. Molly stood wringing her hands on the threshold of Mrs. Avery's room. He hurled the girl away as if she had been a wrong prescription left by a blundering rival. His blazing eye concentrated itself on the patient like a burning-glass. That which had been Jean Avery, half reclining, held against her husband's heart, lay unresponsive. One arm with its slender hand hung over the edge of the bed, straight down.

"Change the position!" cried Dr. Thorne loudly. "Put her head down—so—flat—perfectly horizontal. Now get out of my way—the whole of you."

He knelt beside the bed, and with great gentleness, curiously at contrast with his imperious and one might have called it angry manner, put his ear to Jean's heart.

"It's dead she is. The other doctor do be sayin' so," sobbed Molly, who found it perplexing that Mr. Avery did not speak, and felt that the courtesies of the distressing occasion devolved upon herself. Dr. Thorne held up an imperious finger. In the stillness which obeyed him the clock on the mantel ticked obtrusively, like the rhythm of life in a vital organism.

At the instant when he reached her side, Dr. Thorne had laid Jean's hanging hand gently upon the bed, warming it and covering it as he did so. But he had paid no attention to it otherwise till now, when he was seen to put his fingers on the wrist. It occurred to Avery that the physician did this rather to satisfy or to sustain hope in the family than from any definite end which he himself hoped to attain by it. The husband managed to articulate.

"Is there any pulse?"

"No."

"Does her heart beat?"

Dr. Thorne made no reply. He was putting a colorless, odorless liquid between her lips. His expression of indignation deepened. One might have said that he was in a rage with death. His first impulse to express that emotion noisily had passed. He issued his orders with perfect quiet and consummate self-possession, but the family fled before them like leaves before the wind. Stimulants, hot water, hot stones, fell into the doctor's hands. He took control of the despairing household as a great general takes command of a terrible retreat. Stern, uncompromising, rigid, he flung his whole being against the fate which had snatched his old patient beyond his rescue. His face was almost as white as Jean's.

"There sits the man as fights with death!" cried Molly, in uncontrollable excitement. She and the cook fell on their knees. Pink, in her nightdress, stole in, and leaned against the door; the child was too frightened to cry. The baby had gone to sleep. The house grew ominously still. The mantel clock struck the half-hour. It was now half-past eleven. Avery glanced at the physician's face, and buried his own in his hands.

The doctor rose, and stood frowning. He seemed to hesitate for the first time since he had been in the room.

"Is there no heart-beat yet? Can't you detect *anything*?" asked Avery again. He could not help it. Dr. Thorne looked at him; the physician seemed to treat the question as he would an insult.

"When I have anything to say, I 'll say it," he answered roughly. He stood pondering.

"A glass!" he called peremptorily. Molly handed him a tumbler. He pushed it away.

"I said a *glass*! A mirror!"

Some one handed him Jean's little silver toilet hand-glass. The physician held it to her lips, and laid it down. After a moment's irresolution he took it up, and bending over the body put it to the woman's lips again, and studied it intently for some moments. Avery asked no questions this time, nor did he dare glance at the glass.

"How long," demanded Dr. Thorne suddenly, "has she been like this?"

"I found her so when I came in. It was then eleven o'clock."

"How long had she been alone?"

"I went out at twenty minutes past ten. I went to have a tooth extracted. That was forty minutes."

"Did she speak to you when you went out?"

"Yes—she spoke to me."

"What did she say?"

Marshall Avery made no reply.

"Were there any symptoms of this heart-failure then? Out with it!—No. Never mind. It's evident enough."

The clock on the mantel struck the quarter before twelve.

"She has been as she is an hour and a quarter," said Dr. Thorne. His voice and manner were disheartened. He stood a moment pondering, with a dark face.

"Do you call her dead?" entreated Avery. It seemed to him that he had reached the limit of endurance. He would pull the worst down on his head at one toppling blow.

"No!" cried the physician, in a deep, reverberating tone.

"But is it death?" persisted Avery wildly.

"I do not know," said Dr. Thorne.

"Do you give her up?"

"No!" thundered Dr. Thorne again. "The drowned have been resuscitated after six hours," he added between his teeth. "That's the latest contention."

At this moment a messenger summoned by telephone from the corner pharmacy arrived, running, and pealed and thundered at the door. Some one laid upon the bed within the doctor's reach a small pasteboard box. He opened it in silence, and took from it a tiny crystal or shell of thin glass. This he broke upon a handkerchief, and held the linen cautiously to Jean's face. A powerful, pungent odor filled the room. Avery felt his head whirl as he breathed it. The doctor removed the handkerchief and scrutinized Jean's face. Neither hope nor despair could be detected on his own. Without a word he went to work again.

Not discarding, but not now depending altogether on the aid of warmth, stimulants, and the remedies upon which he had been trained to rely in his duels with death, the physician turned the force of his will and his skill in the direction of another class of experiments.

So far as he could, and at such disadvantage as he must, he put certain of the modern processes of artificial respiration to the proof. He did not allow himself to be hampered in this desperate expedient by an element of danger involved in lifting the patient's arms above her head; for Jean had passed far beyond all ordinary perils. Obstacles seemed to serve only to whip his audacity. His countenance grew dogged and grim. He worked with an ineffable gentleness, and with an indomitable determination that gave a definite grandeur to his bearing.

Avery looked on with dull, blind eyes; he felt that he was witnessing an unsuccessful attempt at miracle. He began to resent it as an interference with the sanctity of death. He began to wish that the doctor would let his wife alone. The clock on the mantel struck twelve. Pink had fallen asleep, and somebody had carried her back to her own bed. The two women huddled together by the door. The physician had ceased to speak to any person. His square jaws came together like steel machinery that had been locked. In his eyes immeasurable pity gathered; but no one could see his eyes. The clock timed the quarter past midnight.

Avery had now moved round to the other side of the bed; he buried his face in his wife's pillow, and, unobserved, put out his hand to touch her. He reached and clasped her thin left hand on which her wedding-ring hung loosely. Her fingers were not very cold,—he had often known them colder when she was ill,—and as his hand closed over them it seemed to him for a wild instant that hers melted within it; that it relaxed, or warmed beneath his touch.

"I am going mad," he thought. He raised his head. The clock called half-past twelve. Dr. Thorne was holding the little mirror at Jean's lips again. A silvery film—as delicate as mist, as mysterious as life, as mighty as joy—clouded it from end to end.

"*Jean Avery!*" cried the physician, in a ringing tone.

Afterwards Avery thought of that other Healer who summoned his dearest friend from the retreat of death "in a loud voice." But at the moment he thought not at all. For Jean sighed gently and turned her face, and her husband's eyes were the first she saw when the light of her own high soul returned to hers.

In the dim of the dawn Avery followed the exhausted physician into the hall, and led him to an empty room.

"Rest, if you can, doctor," he pleaded; "we can call you. If she sleep, she shall do well," he added in a broken voice. The miracle was yet in his mind.

"Unless you see some change, she may sleep one hour. Call me by then," said Dr. Thorne abstractedly. "And telephone my wife and the hospital that I spend the morning here." He turned his face to the window. Avery, glancing at it in the gray light, saw that great tears were falling unashamed down the doctor's cheeks.

"These sudden deaths are so horrible!" he muttered. "They are the felonies of Nature." Long after this, when the eminent physician met the fate which has been elsewhere recorded of him, and which those who have read his memoirs may recall, Marshall Avery remembered these words; and the expression of the man's face as he uttered them.

He went back to his wife's room, and lay down on the bed by her side. She slept like some sweet child who was tired out with a nervous strain, and would wake, by the sanctities of Nature, refreshed for vigorous life. He dared not fall asleep himself for a careless moment, but propped himself on one elbow and watched her hungrily. Her pulse beat weakly yet, but with some steadiness, and rose in volume as the day deepened. In fact, the tide was coming to the flood.

Off there on the Shoals, reaching up around the gray Cape, inch upon patient inch, the waves climbed to their appointed places. With them the vitality of the woman, obeying the most mysterious law in Nature's mighty code, advanced, and held its own.

Avery looked at his wife, sleeping, as she, waking, would never see him look. All that was noble in shame, all that was permanent in love, harmonized in his eyes. Between his rapture and his reverence, resolve itself seemed to escape him, like a spirit winged for flight because no longer needed in a human heart, being invisibly displaced by stronger angels whose names are known only to the love of married man and woman when ultimate fate has challenged it and found defeat.

Avery's lips moved. He spoke inaudible things. "All I ask," he said, "is another chance." He was not what is called a praying man. But when he had said this, he added the words—"Thou God!"

Jean stirred at this moment. The morning was strong in the room. Her own smile swept across her face like a wing of light.

"Dear," she said distinctly, "did you have the tooth out? Did it hurt you very much? You poor, poor boy!"

She put up her weak hand and touched his cheek.

The doctor could not sleep. He stole in anxiously.

Jean had closed her eyes once more. They opened happily as he entered.

"Why, doctor! You here? What for?"

As if by accident Dr. Thorne's fingers brushed her wrist. The physician's face assumed a noble radiance. He looked affectionately at his old patient.

"Oh, I thought I 'd drop in and see how you were getting along." He smiled indulgently. "Go to sleep again," he said, in a comfortable tone.

But Avery followed the doctor; as love has pursued the healers of all ages from the sick-room to the garrison of the utter truth.

The two men stood in the dusky hall. The physician was the first to speak.

"Well, I 've done my part, Avery. Now"—

"You have wrought a miracle," said the husband, with much emotion.

"Work you a greater, then!" commanded Dr. Thorne. He did not speak gently. But a certain entreaty in the attitude of the shaken man subdued him.

"With love all things are possible," persisted the physician in his other voice. "I have always said that she was not incurable. Now the difference is"—

Avery did not reply. It was not for the doctor to know what the difference was. That was for Jean ... only for Jean. He went back to his wife's room,

and knelt beside her bed.

She seemed to have missed him, for she put out her hand wistfully; there was a touch of timidity in the motion, as if she were not sure that he would stay, or that he would be happy in staying; he perceived that she questioned herself whether she were an inconvenience to him. She tried to say something about ordering his breakfast, and to ask if she had kept him awake much. But Jean was very weak. She found it hard to talk. He remembered that she must not be agitated. He laid his cheek upon her hand, and hid his broken face.

---

## ***FICTION AND BIOGRAPHY***

**By Elizabeth Stuart Phelps  
(MRS. WARD)**

THE GATES AJAR. 16mo, \$1.50.

BEYOND THE GATES. 16mo, \$1.25.

THE GATES BETWEEN. 16mo, \$1.25.

WITHIN THE GATES. A Drama. 12mo, \$1.50

MEN, WOMEN, AND GHOSTS. Stories. 16mo, \$1.50.

HEDGED IN. 16mo, \$1.50.

THE SILENT PARTNER. 16mo, \$1.50.

THE STORY OF AVIS. 16mo, \$1.50.

SEALED ORDERS, and Other Stories. 16mo, \$1.50.

FRIENDS: A Duet. 16mo, \$1.25; paper, 50 cents.

DOCTOR ZAY. 16mo, \$1.25.

AN OLD MAID'S PARADISE, and BURGLARS IN PARADISE. 16mo, \$1.25.

THE MASTER OF THE MAGICIANS. Collaborated with HERBERT D. WARD. 16mo, \$1.25; paper, 50 cents.

COME FORTH! Collaborated with HERBERT D. WARD. 16mo, \$1.25; paper, 50 cents.

FOURTEEN TO ONE. Short Stories. 16mo, \$1.25.

DONALD MARCY. 16mo, \$1.25.

A SINGULAR LIFE. 16mo, \$1.25.

THE SUPPLY AT SAINT AGATHA'S. Illustrated. Square 12mo, \$1.00.

THE MADONNA OF THE TUBS. Illustrated. Square 12mo, boards, 75 cents.

JACK THE FISHERMAN. Illustrated. Square 12mo, boards, 50 cents.

THE SUCCESSORS OF MARY THE FIRST. Illustrated. 12mo, \$1.50.

AVERY. Illustrated. 12mo, \$1.00.

LOVELINESS: A Story. Illustrated. Square 12mo, \$1.00.

CHAPTERS FROM A LIFE. Illustrated. 12mo, \$1.50.

THE STORY OF JESUS CHRIST: An Interpretation. Illustrated. Crown 8vo, \$2.00.

THE SAME. Popular Edition. Illustrated, 16mo, \$1.25.

**HOUGHTON, MIFFLIN & CO.**

**BOSTON AND NEW YORK**

\*\*\* END OF THE PROJECT GUTENBERG EBOOK AVERY \*\*\*

Updated editions will replace the previous one—the old editions will be renamed.

Creating the works from print editions not protected by U.S. copyright law means that no one owns a United States copyright in these works, so the Foundation (and you!) can copy and distribute it in the United States without permission and without paying copyright royalties. Special rules, set forth in the General Terms of Use part of this license, apply to copying and distributing Project Gutenberg™ electronic works to protect the PROJECT GUTENBERG™ concept and trademark. Project Gutenberg is a registered trademark, and may not be used if you charge for an eBook, except by following the terms of the trademark license, including paying royalties for use of the Project Gutenberg trademark. If you do not charge anything for copies of this eBook, complying with the trademark license is very easy. You may use this eBook for nearly any purpose such as creation of derivative works, reports, performances and research. Project Gutenberg eBooks may be modified and printed and given away—you may do practically ANYTHING in the United States with eBooks not protected by U.S. copyright law. Redistribution is subject to the trademark license, especially commercial redistribution.

START: FULL LICENSE

# THE FULL PROJECT GUTENBERG™ LICENSE

PLEASE READ THIS BEFORE YOU DISTRIBUTE OR USE THIS WORK

To protect the Project Gutenberg™ mission of promoting the free distribution of electronic works, by using or distributing this work (or any other work associated in any way with the phrase “Project Gutenberg”), you agree to comply with all the terms of the Full Project Gutenberg License available with this file or online at [www.gutenberg.org/license](http://www.gutenberg.org/license).

## **Section 1. General Terms of Use and Redistributing Project Gutenberg electronic works**

1.A. By reading or using any part of this Project Gutenberg electronic work, you indicate that you have read, understand, agree to and accept all the terms of this license and intellectual property (trademark/copyright) agreement. If you do not agree to abide by all the terms of this agreement, you must cease using and return or destroy all copies of Project Gutenberg electronic works in your possession. If you paid a fee for obtaining a copy of or access to a Project Gutenberg electronic work and you do not agree to be bound by the terms of this agreement, you may obtain a refund from the person or entity to whom you paid the fee as set forth in paragraph 1.E.8.

1.B. “Project Gutenberg” is a registered trademark. It may only be used on or associated in any way with an electronic work by people who agree to be bound by the terms of this agreement. There are a few things that you can do with most Project Gutenberg electronic works even without complying with the full terms of this agreement. See paragraph 1.C below. There are a lot of things you can do with Project Gutenberg electronic works if you follow the terms of this agreement and help preserve free future access to Project Gutenberg electronic works. See paragraph 1.E below.

1.C. The Project Gutenberg Literary Archive Foundation (“the Foundation” or PGLAF), owns a compilation copyright in the collection of Project Gutenberg electronic works. Nearly all the individual works in the collection are in the public domain in the United States. If an individual work is unprotected by copyright law in the United States and you are

located in the United States, we do not claim a right to prevent you from copying, distributing, performing, displaying or creating derivative works based on the work as long as all references to Project Gutenberg are removed. Of course, we hope that you will support the Project Gutenberg mission of promoting free access to electronic works by freely sharing Project Gutenberg works in compliance with the terms of this agreement for keeping the Project Gutenberg name associated with the work. You can easily comply with the terms of this agreement by keeping this work in the same format with its attached full Project Gutenberg License when you share it without charge with others.

1.D. The copyright laws of the place where you are located also govern what you can do with this work. Copyright laws in most countries are in a constant state of change. If you are outside the United States, check the laws of your country in addition to the terms of this agreement before downloading, copying, displaying, performing, distributing or creating derivative works based on this work or any other Project Gutenberg work. The Foundation makes no representations concerning the copyright status of any work in any country other than the United States.

1.E. Unless you have removed all references to Project Gutenberg:

1.E.1. The following sentence, with active links to, or other immediate access to, the full Project Gutenberg License must appear prominently whenever any copy of a Project Gutenberg work (any work on which the phrase “Project Gutenberg” appears, or with which the phrase “Project Gutenberg” is associated) is accessed, displayed, performed, viewed, copied or distributed:

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg™ License included with this eBook or online at [www.gutenberg.org](http://www.gutenberg.org). If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

1.E.2. If an individual Project Gutenberg electronic work is derived from texts not protected by U.S. copyright law (does not contain a notice indicating that it is posted with permission of the copyright holder), the work can be copied and distributed to anyone in the United States without paying any fees or charges. If you are redistributing or providing access to a work with the phrase “Project Gutenberg” associated with or appearing on the work, you must comply either with the requirements of paragraphs 1.E.1 through 1.E.7 or obtain permission for the use of the work and the Project Gutenberg trademark as set forth in paragraphs 1.E.8 or 1.E.9.

1.E.3. If an individual Project Gutenberg electronic work is posted with the permission of the copyright holder, your use and distribution must comply with both paragraphs 1.E.1 through 1.E.7 and any additional terms imposed by the copyright holder. Additional terms will be linked to the Project Gutenberg License for all works posted with the permission of the copyright holder found at the beginning of this work.

1.E.4. Do not unlink or detach or remove the full Project Gutenberg License terms from this work, or any files containing a part of this work or any other work associated with Project Gutenberg.

1.E.5. Do not copy, display, perform, distribute or redistribute this electronic work, or any part of this electronic work, without prominently displaying the sentence set forth in paragraph 1.E.1 with active links or immediate access to the full terms of the Project Gutenberg License.

1.E.6. You may convert to and distribute this work in any binary, compressed, marked up, nonproprietary or proprietary form, including any word processing or hypertext form. However, if you provide access to or distribute copies of a Project Gutenberg work in a format other than “Plain Vanilla ASCII” or other format used in the official version posted on the official Project Gutenberg website ([www.gutenberg.org](http://www.gutenberg.org)), you must, at no additional cost, fee or expense to the user, provide a copy, a means of exporting a copy, or a means of obtaining a copy upon request, of the work in its original “Plain Vanilla ASCII” or other form. Any alternate format must include the full Project Gutenberg License as specified in paragraph 1.E.1.

1.E.7. Do not charge a fee for access to, viewing, displaying, performing, copying or distributing any Project Gutenberg works unless you comply with paragraph 1.E.8 or 1.E.9.

1.E.8. You may charge a reasonable fee for copies of or providing access to or distributing Project Gutenberg electronic works provided that:

- You pay a royalty fee of 20% of the gross profits you derive from the use of Project Gutenberg works calculated using the method you already use to calculate your applicable taxes. The fee is owed to the owner of the Project Gutenberg trademark, but he has agreed to donate royalties under this paragraph to the Project Gutenberg Literary Archive Foundation. Royalty payments must be paid within 60 days following each date on which you prepare (or are legally required to prepare) your periodic tax returns. Royalty payments should be clearly marked as such and sent to the Project Gutenberg Literary Archive Foundation at the address specified in Section 4, "Information about donations to the Project Gutenberg Literary Archive Foundation."
- You provide a full refund of any money paid by a user who notifies you in writing (or by e-mail) within 30 days of receipt that s/he does not agree to the terms of the full Project Gutenberg™ License. You must require such a user to return or destroy all copies of the works possessed in a physical medium and discontinue all use of and all access to other copies of Project Gutenberg™ works.
- You provide, in accordance with paragraph 1.F.3, a full refund of any money paid for a work or a replacement copy, if a defect in the electronic work is discovered and reported to you within 90 days of receipt of the work.
- You comply with all other terms of this agreement for free distribution of Project Gutenberg™ works.

1.E.9. If you wish to charge a fee or distribute a Project Gutenberg™ electronic work or group of works on different terms than are set forth in this agreement, you must obtain permission in writing from the Project Gutenberg Literary Archive Foundation, the manager of the Project

Gutenberg™ trademark. Contact the Foundation as set forth in Section 3 below.

#### 1.F.

1.F.1. Project Gutenberg volunteers and employees expend considerable effort to identify, do copyright research on, transcribe and proofread works not protected by U.S. copyright law in creating the Project Gutenberg™ collection. Despite these efforts, Project Gutenberg™ electronic works, and the medium on which they may be stored, may contain “Defects,” such as, but not limited to, incomplete, inaccurate or corrupt data, transcription errors, a copyright or other intellectual property infringement, a defective or damaged disk or other medium, a computer virus, or computer codes that damage or cannot be read by your equipment.

1.F.2. LIMITED WARRANTY, DISCLAIMER OF DAMAGES - Except for the “Right of Replacement or Refund” described in paragraph 1.F.3, the Project Gutenberg Literary Archive Foundation, the owner of the Project Gutenberg™ trademark, and any other party distributing a Project Gutenberg™ electronic work under this agreement, disclaim all liability to you for damages, costs and expenses, including legal fees. YOU AGREE THAT YOU HAVE NO REMEDIES FOR NEGLIGENCE, STRICT LIABILITY, BREACH OF WARRANTY OR BREACH OF CONTRACT EXCEPT THOSE PROVIDED IN PARAGRAPH 1.F.3. YOU AGREE THAT THE FOUNDATION, THE TRADEMARK OWNER, AND ANY DISTRIBUTOR UNDER THIS AGREEMENT WILL NOT BE LIABLE TO YOU FOR ACTUAL, DIRECT, INDIRECT, CONSEQUENTIAL, PUNITIVE OR INCIDENTAL DAMAGES EVEN IF YOU GIVE NOTICE OF THE POSSIBILITY OF SUCH DAMAGE.

1.F.3. LIMITED RIGHT OF REPLACEMENT OR REFUND - If you discover a defect in this electronic work within 90 days of receiving it, you can receive a refund of the money (if any) you paid for it by sending a written explanation to the person you received the work from. If you received the work on a physical medium, you must return the medium with your written explanation. The person or entity that provided you with the defective work may elect to provide a replacement copy in lieu of a refund. If you received the work electronically, the person or entity providing it to

you may choose to give you a second opportunity to receive the work electronically in lieu of a refund. If the second copy is also defective, you may demand a refund in writing without further opportunities to fix the problem.

1.F.4. Except for the limited right of replacement or refund set forth in paragraph 1.F.3, this work is provided to you 'AS-IS', WITH NO OTHER WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO WARRANTIES OF MERCHANTABILITY OR FITNESS FOR ANY PURPOSE.

1.F.5. Some states do not allow disclaimers of certain implied warranties or the exclusion or limitation of certain types of damages. If any disclaimer or limitation set forth in this agreement violates the law of the state applicable to this agreement, the agreement shall be interpreted to make the maximum disclaimer or limitation permitted by the applicable state law. The invalidity or unenforceability of any provision of this agreement shall not void the remaining provisions.

1.F.6. INDEMNITY - You agree to indemnify and hold the Foundation, the trademark owner, any agent or employee of the Foundation, anyone providing copies of Project Gutenberg™ electronic works in accordance with this agreement, and any volunteers associated with the production, promotion and distribution of Project Gutenberg™ electronic works, harmless from all liability, costs and expenses, including legal fees, that arise directly or indirectly from any of the following which you do or cause to occur: (a) distribution of this or any Project Gutenberg work, (b) alteration, modification, or additions or deletions to any Project Gutenberg work, and (c) any Defect you cause.

## **Section 2. Information about the Mission of Project Gutenberg**

Project Gutenberg is synonymous with the free distribution of electronic works in formats readable by the widest variety of computers including obsolete, old, middle-aged and new computers. It exists because of the

efforts of hundreds of volunteers and donations from people in all walks of life.

Volunteers and financial support to provide volunteers with the assistance they need are critical to reaching Project Gutenberg's goals and ensuring that the Project Gutenberg collection will remain freely available for generations to come. In 2001, the Project Gutenberg Literary Archive Foundation was created to provide a secure and permanent future for Project Gutenberg and future generations. To learn more about the Project Gutenberg Literary Archive Foundation and how your efforts and donations can help, see Sections 3 and 4 and the Foundation information page at [www.gutenberg.org](http://www.gutenberg.org).

### **Section 3. Information about the Project Gutenberg Literary Archive Foundation**

The Project Gutenberg Literary Archive Foundation is a non-profit 501(c)(3) educational corporation organized under the laws of the state of Mississippi and granted tax exempt status by the Internal Revenue Service. The Foundation's EIN or federal tax identification number is 64-6221541. Contributions to the Project Gutenberg Literary Archive Foundation are tax deductible to the full extent permitted by U.S. federal laws and your state's laws.

The Foundation's business office is located at 41 Watchung Plaza #516, Montclair NJ 07042, USA, +1 (862) 621-9288. Email contact links and up to date contact information can be found at the Foundation's website and official page at [www.gutenberg.org/contact](http://www.gutenberg.org/contact)

### **Section 4. Information about Donations to the Project Gutenberg Literary Archive Foundation**

Project Gutenberg™ depends upon and cannot survive without widespread public support and donations to carry out its mission of increasing the number of public domain and licensed works that can be freely distributed in machine-readable form accessible by the widest array of equipment

including outdated equipment. Many small donations (\$1 to \$5,000) are particularly important to maintaining tax exempt status with the IRS.

The Foundation is committed to complying with the laws regulating charities and charitable donations in all 50 states of the United States. Compliance requirements are not uniform and it takes a considerable effort, much paperwork and many fees to meet and keep up with these requirements. We do not solicit donations in locations where we have not received written confirmation of compliance. To SEND DONATIONS or determine the status of compliance for any particular state visit [www.gutenberg.org/donate](http://www.gutenberg.org/donate).

While we cannot and do not solicit contributions from states where we have not met the solicitation requirements, we know of no prohibition against accepting unsolicited donations from donors in such states who approach us with offers to donate.

International donations are gratefully accepted, but we cannot make any statements concerning tax treatment of donations received from outside the United States. U.S. laws alone swamp our small staff.

Please check the Project Gutenberg web pages for current donation methods and addresses. Donations are accepted in a number of other ways including checks, online payments and credit card donations. To donate, please visit: [www.gutenberg.org/donate](http://www.gutenberg.org/donate).

## **Section 5. General Information About Project Gutenberg electronic works**

Professor Michael S. Hart was the originator of the Project Gutenberg concept of a library of electronic works that could be freely shared with anyone. For forty years, he produced and distributed Project Gutenberg eBooks with only a loose network of volunteer support.

Project Gutenberg eBooks are often created from several printed editions, all of which are confirmed as not protected by copyright in the U.S. unless a

copyright notice is included. Thus, we do not necessarily keep eBooks in compliance with any particular paper edition.

Most people start at our website which has the main PG search facility: [www.gutenberg.org](http://www.gutenberg.org).

This website includes information about Project Gutenberg, including how to make donations to the Project Gutenberg Literary Archive Foundation, how to help produce our new eBooks, and how to subscribe to our email newsletter to hear about new eBooks.